This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

February 24, 2026

WEBVTT

1
00:00:19.520 --> 00:00:20.820
Board Room: Just football characters.

2
00:00:26.110 --> 00:00:29.949
Board Room: Hello! Oh, there it goes, it's working now. Very good. Alright.

3
00:00:30.200 --> 00:00:46.249
Board Room: Hi, everyone, good evening. I'm calling to order the Berkeley City Council meeting. Today is Tuesday, February 24th, 2026, and it is 6.03 p.m. Clerk, can you please take the roll? Okay, Councilmember Kastarwani is absent.

4
00:00:46.410 --> 00:00:49.789
Board Room: Taplin? Present. Bartlett? Here.

5
00:00:49.950 --> 00:00:55.669
Board Room: Tregeb? Pasant. O'Keefe? Here. Blackaby? Here. Munapara?

6
00:00:55.930 --> 00:00:56.720
Board Room: Here.

7
00:00:56.820 --> 00:01:14.129
Board Room: Humber, present, and Mayor Ishii? Here. Okay, quorum is present. Very good, thank you very much. So, on our ceremonial calendar, we have a number of different things. The first being that today, well, February 2026, is Heart Month.

8
00:01:14.260 --> 00:01:21.100
Board Room: So the American Heart Association made a request, and I believe Mary might be here? Mary Kirsten?

9
00:01:22.410 --> 00:01:27.929

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: Come on up! Oh, I'm sorry, Maya misread it. Come on up! Welcome!

10
00:01:28.940 --> 00:01:31.990
Board Room: Commemorating American Heart Month 2026.

11
00:01:32.060 --> 00:01:37.379
Board Room: Whereas cardiac arrest is a leading cause of death worldwide, with 350,000

12
00:01:37.380 --> 00:01:53.080
Board Room: cardiac arrests occurring yearly outside of hospitals in the United States, resulting in approximately 10% of people surviving. And whereas often the first people to witness out-of-hospital cardiac arrests are family members, making this the first and most crucial link for survival.

13
00:01:53.080 --> 00:02:08.189
Board Room: And whereas immediate cardiopulmonary resuscitation can double or even triple a person's chance of survival, yet only about 41% of people who experience cardiac arrest receive immediate CPR from someone nearby, and fewer than 12% receive…

14
00:02:08.190 --> 00:02:16.630
Board Room: aid from an automated external defibrillator, AED, before advanced help arrives, and whereas for adults and teens, hands-on… hands…

15
00:02:16.630 --> 00:02:38.410
Board Room: Hands-only CPR, calling 911, and pushing hard and fast in the center of the chest can double or triple the chance of survival, while infants and children require CPR with rescue breaths to restore oxygen and circulation, and whereas studies show that women are less likely to receive CPR than men due to miseducation and lack of awareness, resulting in the American Heart Association.

16
00:02:38.410 --> 00:03:00.639
Board Room: oh, the American Heart Association has set a bold goal to double survival from out-of-hospital cardiac arrest by 2030 through its National Nation of Lifesavers initiative. And now, therefore, be it resolved that I, Adina Ishii, Mayor of the City of Berkeley, do hereby declare February 2026 to be American Heart Month.

17
00:03:00.950 --> 00:03:17.869

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: Would you like to say a few words? I would, thank you. So hi, my name is Maya Gertson, and I'm a Senior Development Director with the American Heart Association. Thank you so much for recognizing February as American Heart Month this year, and for supporting our mission of saving lives from heart disease and stroke.

18
00:03:18.320 --> 00:03:35.179
Board Room: This year, we're once again focused on building a nation of lifesavers and spreading the powerful message that you are the first responder until help arrives, so that all of us can be prepared to react to a cardiac emergency by calling 911 and knowing how to perform CPR.

19
00:03:35.880 --> 00:03:53.810
Board Room: As the Mayor mentioned, over 350,000 people experience out-of-hospital cardiac arrest every year in this country, and 90% of those are fatal. So we have a bold goal to, double cardiac arrest survival by the year 2030.

20
00:03:54.260 --> 00:04:07.919
Board Room: So as a Berkeley resident, as a parent of two BUSD students, and a member of the Heart Association's Bay Area team, I urge the people of Berkeley to learn CPR. I can… I learned, and so can you.

21
00:04:08.460 --> 00:04:18.519
Board Room: We've also been proud to work in coalition with community partners, to support the passage of Measure Z last November to extend the City of Berkeley's sugary drink tax.

22
00:04:18.769 --> 00:04:30.330
Board Room: And we look forward to continuing to reinforce the city's public health efforts. The American Heart Association gratefully accepts this proclamation and Berkeley's continued support of its work. Thank you.

23
00:05:27.330 --> 00:05:28.470
Board Room: Thank you!

24
00:05:29.070 --> 00:05:42.539
Board Room: As a former soda tax commissioner, I appreciate your help on that, and I'm also someone who learned adult, child, and infant CPR, so very important tools that we should all have. Who knows? We may need it someday.

25
00:05:42.760 --> 00:05:54.909

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: Alright, next, there is a proclamation, an adjournment in memory, that was requested by Councilmember Bartlett's office, and so I will pass it over to him so he can read, the proclamation. Thank you.

26
00:05:55.190 --> 00:05:56.460
Board Room: Thank you, Madam Mayor.

27
00:05:56.620 --> 00:06:00.019
Board Room: And I see Gianna's family's here. Mary, how are you? Good to see you.

28
00:06:01.420 --> 00:06:05.030
Board Room: Gianna was a dear friend of mine, and and my neighbor.

29
00:06:05.210 --> 00:06:07.219
Board Room: And my constant,

30
00:06:07.390 --> 00:06:12.940
Board Room: Co-creator, if you will, like she was with many people in our senior together these last 9 years.

31
00:06:13.120 --> 00:06:19.450
Board Room: And, really sad to see her go. And, she's in my prayers, and so are you. We talked the last time.

32
00:06:20.020 --> 00:06:23.539
Board Room: Right? Like, again, and, miss her a lot, you know.

33
00:06:23.870 --> 00:06:30.949
Board Room: Read this for you, for the community, and Gianna's name, and it's not in here, but let's just say for the record, Gianna was an Italian nobility.

34
00:06:31.570 --> 00:06:51.410
Board Room: She was a duchess or a countess? Which one was it? She was a countess, and the title was in her… we have different fathers, and her… I'm Potato Famine Irish, I used to tease her, and her family title was granted in the 1100s, so it's a very old Italian family. Wow. Amazing.

35
00:06:52.420 --> 00:06:55.169
Board Room: I mean, the life and legacy of Gianna Renuzzi.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

36
00:06:55.730 --> 00:06:57.240
Board Room: Born, whereas…

37
00:06:57.410 --> 00:07:08.999
Board Room: Born on October 30th, 1950, in Los Angeles, California, Gianna led a life defined by creativity, cultural exchange, public service, and deep community engagement.

38
00:07:09.390 --> 00:07:12.160
Board Room: And whereas she received her early education.

39
00:07:12.300 --> 00:07:19.070
Board Room: From Our Lady of Good Council Catholic Church and School, spent her formative years on her family's ranch in Montana.

40
00:07:19.280 --> 00:07:23.530
Board Room: Earned a degree in Italian literature, from the University of Montana.

41
00:07:24.250 --> 00:07:26.679
Board Room: Then studying abroad in Taiwan, she taught English.

42
00:07:26.930 --> 00:07:39.059
Board Room: and completed Montessori training, which used on my daughter, by the way, in Italy under Maria Montessori's final student, as Maria Montessori's final student. And whereas she made Berkeley her home.

43
00:07:39.330 --> 00:07:44.249
Board Room: By cultivating a life, Rooted in creativity, travel, and entrepreneurship.

44
00:07:44.660 --> 00:07:52.950
Board Room: Although a transformative jewelry business that connected artisans from China, Guatemala, Cuba, Algeria, Italy, and beyond to Berkeley.

45
00:07:53.360 --> 00:08:02.919
Board Room: And whereas Gianna became a vital steward of Berkeley's cultural life with her work on Telegraph Avenue and the Telegraph Area Business Association.

46

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:08:03.420 --> 00:08:08.619
Board Room: Notably serving as a promoter and manager of the Berkeley World Music Festival.

47
00:08:09.040 --> 00:08:12.139
Board Room: And whereas committed to Berkeley's civic engagement.

48
00:08:12.740 --> 00:08:14.710
Board Room: By serving on the board of LeCante.

49
00:08:14.990 --> 00:08:21.169
Board Room: Homeowners Association and LeConte Neighborhood Association as president for many years, which we know.

50
00:08:21.330 --> 00:08:26.160
Board Room: And the Parks, Rec, and Waterfront Commissions, and whereas Jana passed away.

51
00:08:26.270 --> 00:08:33.830
Board Room: On January 3rd, 2026, leaving behind a legacy of joy, creativity, service, and global connection.

52
00:08:33.990 --> 00:08:36.379
Board Room: and a survivor, his sister, Mary Cunningham.

53
00:08:37.600 --> 00:08:41.829
Board Room: extended family in Bologna, Italy, and her many friends across the world.

54
00:08:42.360 --> 00:08:45.720
Board Room: Now, therefore, be it resolved that the Mayor Adina Ischi.

55
00:08:45.970 --> 00:08:51.599
Board Room: Mayor of the City of Berkeley honors and celebrates the life and legacy of Gianna Renuzzi.

56
00:08:51.890 --> 00:09:03.309
Board Room: Expresses deep gratitude for her extraordinary contributions to the cultural, artistic, and civic life of our community, and extends heartfelt condolences to her family, friends, and all those whose lives she enriched.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

57
00:09:04.080 --> 00:09:07.880
Board Room: Let Gianna Renuzzi's life remind us of the power of creativity.

58
00:09:08.110 --> 00:09:14.049
Board Room: cultural exchange, and joyful service in building a vibrant and compassionate community. You're here.

59
00:09:21.330 --> 00:09:26.300
Board Room: She loved Berkeley and the opportunities it provided, and…

60
00:09:26.560 --> 00:09:30.770
Board Room: long-term resident, and on her behalf, I thank you all.

61
00:10:32.030 --> 00:10:34.769
Board Room: Thank you all very much, I appreciate you.

62
00:10:34.960 --> 00:10:37.860
Board Room: All being here and listening, especially these

63
00:10:38.220 --> 00:10:46.879
Board Room: stories about people's lives, I think it's… it's really important to know who's in our community and these people, you know, who impact us every day.

64
00:10:48.680 --> 00:11:05.739
Board Room: Councilmember Trago has also asked that we take a moment of silence tonight to mark the lives lost in the four years since Ukraine was invaded. Today is the anniversary of the war in Ukraine, and so if we can also just take a moment of silence as well.

65
00:11:24.910 --> 00:11:26.050
Board Room: Thank you all.

66
00:11:27.070 --> 00:11:32.799
Board Room: That concludes our ceremonial matters for this evening. I will see if the City Manager has any comments.

67
00:11:33.250 --> 00:11:34.739
Board Room: No comments, Madam Mayor.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

68
00:11:35.320 --> 00:11:41.170
Board Room: Thank you, and, I will now see if our City Auditor has any comments this evening.

69
00:11:46.210 --> 00:11:47.909
Board Room: Hey, good evening.

70
00:11:49.000 --> 00:11:54.110
Board Room: Mayor and Council, I just want to wish everyone a happy Lunar New Year.

71
00:11:54.450 --> 00:12:01.799
Board Room: And tonight, I wanted to just give a brief update on item 24, the Restaurant Inspections Audit Follow-Up.

72
00:12:02.120 --> 00:12:17.289
Board Room: Of our 8 recommendations, 2 are now fully implemented, so thank you so much for that work. This includes our recommendation for the division to create a plan to ensure timely response to complaints involving alleged foodborne illness.

73
00:12:17.510 --> 00:12:29.409
Board Room: The Division has strengthened its policy for addressing these complaints by clarifying the turnaround time and staff responsibilities to ensure complaints are received and prioritized within one business day.

74
00:12:29.950 --> 00:12:33.069
Board Room: Four recommendations are now partly implemented.

75
00:12:33.190 --> 00:12:49.629
Board Room: And one highlight is that the division is now using program-specific codes to track revenues and expenditures related to food facility inspections. During our audit, we found that that information was not able to be tracked because of the way that the,

76
00:12:49.720 --> 00:12:57.760
Board Room: system was designed. So, our team will reassess the recommendation once, that report is available in 2026.

77
00:12:58.480 --> 00:13:09.689

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: later in 2026. Another highlight is that in response to our recommendation about updating the restaurant inspections data, the division has strengthened its requirements for data management and monitoring.

78
00:13:09.690 --> 00:13:22.619
Board Room: And the division estimates their new database will be live in June 2026. So, I'm really looking forward to that. In our next follow-up, we will check whether they can produce an accurate list of facilities

79
00:13:22.750 --> 00:13:26.260
Board Room: That prior… that is prioritized by the last inspection date.

80
00:13:26.880 --> 00:13:40.519
Board Room: And the division has also taken steps in response to developing a plan to start window placards. According to the division, their recent fee study helps to clarify the resources needed for this placarding program.

81
00:13:40.570 --> 00:13:51.369
Board Room: So I'm really excited that we can start looking at one day having placards in Berkeley, and the training has been completed, so they can

82
00:13:51.460 --> 00:14:03.709
Board Room: They can help support the design of an evidence-based placarding program, but that will need additional time and effort in ensuring that the program is the best fit for Berkeley.

83
00:14:03.840 --> 00:14:11.529
Board Room: And finally, the division, has not yet uploaded the inspections data online after it was taken down.

84
00:14:11.730 --> 00:14:18.800
Board Room: The division updated its webpage to include instructions for requesting individual inspection reports.

85
00:14:18.950 --> 00:14:29.930
Board Room: from the Environmental Health Division, and they are estimating that the data will be back online in summer of 2026. So I just want to thank the Environmental Health Division for this update.

86
00:14:30.140 --> 00:14:42.140

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: And thank you very much. And I believe there's, there's another one of my reports that will hopefully get moved to action so we can discuss, performance measures. Thank you.

87
00:14:42.840 --> 00:14:44.320
Board Room: Thank you very much.

88
00:14:44.630 --> 00:14:50.599
Board Room: We will now take public comment on non-agenda matters.

89
00:15:16.050 --> 00:15:22.819
Board Room: 5 cards, the car… and you can come up, speak in any order. You'll have one minute per person.

90
00:15:24.570 --> 00:15:35.290
Board Room: Margo Murtaugh… Steven Alpert… James Arnold, Celeste Marks… Rhonda Gruska.

91
00:15:47.440 --> 00:15:48.610
Board Room: Your name?

92
00:15:50.130 --> 00:15:50.890
Board Room: So…

93
00:15:56.740 --> 00:15:59.370
Board Room: Other folks, if you heard your name called.

94
00:16:01.690 --> 00:16:05.630
Board Room: can stand up. Good evening. I'm Dr. Steven Alpert.

95
00:16:05.920 --> 00:16:12.470
Board Room: Last night, the Council voted to deny an appeal by two local building trades to reject a proposal

96
00:16:12.630 --> 00:16:15.630
Board Room: The 20-story project at 2425 Durant.

97
00:16:16.070 --> 00:16:17.720
Board Room: The basis for that appeal

98

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:16:17.900 --> 00:16:27.929
Board Room: was that developer Mark Rhodes and Laconia Development assorted that concessions and state density bonus law permit them to bypass Berkeley's hard hat ordinance.

99
00:16:28.220 --> 00:16:40.580
Board Room: That measure, passed in May of 2023, requires developers of large projects to provide health insurance, apprenticeship training, and fair prevailing rate pay to construction workers.

100
00:16:41.080 --> 00:17:00.849
Board Room: Lawyers for the Trade Councils argued that allowing developers to bypass local standards was a misuse of density bonus law, and that no other developer statewide has previously used the vague concessions and density bonus law to negate local building standards and pay less to construction workers.

101
00:17:01.230 --> 00:17:04.779
Board Room: Council members all proudly proclaim that you are pro-housing.

102
00:17:04.930 --> 00:17:09.639
Board Room: But by your actions yesterday, instead, you clearly demonstrate you are pro-development.

103
00:17:10.589 --> 00:17:11.319
Board Room: Thank you.

104
00:17:13.060 --> 00:17:14.009
Board Room: Thank you.

105
00:17:21.310 --> 00:17:22.549
Board Room: Good evening.

106
00:17:22.930 --> 00:17:28.359
Board Room: My name is Rhonda Grushka. I'm here to serve Council Member Blackaby

107
00:17:28.359 --> 00:17:45.709
Board Room: with an intent to recall notice. I'm sorry, but, public comment isn't supposed to be used to address a specific council member, it's meant to be used to address the council at large. So if you have a

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

comment… I'll let you all know that I'm here to serve a recall… intent to recall.

108
00:17:45.760 --> 00:17:50.989
Board Room: I have a copy for the city clerk, I have a copy for the council member.

109
00:17:51.140 --> 00:17:58.249
Board Room: Today is the 24th of February. My manner of service is in person.

110
00:17:58.380 --> 00:18:09.469
Board Room: I have my name, I have my address, my zip code, the state, and the time and date of submission. Let's look at the clock here, it looks like it's about…

111
00:18:10.070 --> 00:18:13.829
Board Room: what would everyone say? 622?

112
00:18:14.070 --> 00:18:21.290
Board Room: So anyway, just trying to dot all the I's, cross all the T's, because I have been here before.

113
00:18:21.320 --> 00:18:35.399
Board Room: And just making sure I'm following proper protocol. So that's why I'm here, and that's why I'm speaking tonight, to make sure there's no confusion about why I'm here. Thank you. So thank you very much.

114
00:18:42.590 --> 00:18:44.450
Board Room: Okay, thank you.

115
00:18:45.080 --> 00:18:52.559
Board Room: Did you… did you get that, Rose? I just wanted to make sure you could hear. Someone was ceding their time. She gave her name to me, Lola Zerfley.

116
00:18:54.630 --> 00:18:56.519
Board Room: Army. She gave it.

117
00:18:58.910 --> 00:19:00.820
Board Room: 17, or over top.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

118
00:19:01.850 --> 00:19:03.550
Board Room: Yes.

119
00:19:04.310 --> 00:19:08.020
Board Room: Sorry, it can be hard to hear from this far away, so… go ahead.

120
00:19:08.180 --> 00:19:13.190
Board Room: Hello. My name is Lola Zerpley, I'm a student at UC Berkeley as well.

121
00:19:13.390 --> 00:19:18.190
Board Room: As a resident of Southside Berkeley, living at the intersection of Derby and Warring.

122
00:19:18.430 --> 00:19:26.340
Board Room: also known as Zachary's Corner, named after the young boy who sadly died walking across the intersection in 2009, 17 years ago.

123
00:19:26.770 --> 00:19:34.099
Board Room: Since 2011, there have been 11 reported accidents involving that intersection, including pedestrians being hit by a car.

124
00:19:34.290 --> 00:19:40.559
Board Room: One of which was in 2024, it was an 84-year-old man hit by an AC Transit bus.

125
00:19:40.680 --> 00:19:44.619
Board Room: On Tuesday, February 10th, I was hit by a car walking in the crosswalk.

126
00:19:45.100 --> 00:19:47.110
Board Room: Across that very same intersection.

127
00:19:49.570 --> 00:19:53.160
Board Room: at an intersection that is known to the City of Berkeley as high injury.

128
00:19:53.510 --> 00:19:55.499
Board Room: Yet, there's been nothing done to fix it.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

129
00:20:00.470 --> 00:20:03.949
Board Room: I understand that there have been some plans to change that intersection.

130
00:20:04.660 --> 00:20:09.559
Board Room: That would be done at the end of 2027, making it 18 years since Zachary was hit.

131
00:20:09.950 --> 00:20:16.849
Board Room: I'm gonna continue, if that's okay. Is there someone who… Someone is seating you some time. Go ahead. Okay, thank you.

132
00:20:19.470 --> 00:20:33.559
Board Room: Giving a full other year of opportunity for a person to be hit, when we fully know that at this point, it is not an if, but a when. And when that occurs, it will fall on the city's hands, and it will be the city's fault. Because by now, it is very clear that none of these accidents should have happened.

133
00:20:33.710 --> 00:20:44.430
Board Room: If the city had put in even a blinking pedestrian light in the meantime, and at the very least, repainted the crosswalk that has now been faded for many years, then accidents, including mine, could have been prevented.

134
00:20:44.510 --> 00:20:55.709
Board Room: I am lucky, and I understand that. I'm lucky to be up here angry, angry that I have immense back pain, and multiple x-rays and MRI show that I have spinal and vertebrae damage that I will have to deal with and pay for.

135
00:20:55.810 --> 00:21:02.210
Board Room: I know that I'm lucky to be alive, but being alive should not be the bare minimum expectation when crossing the street in your own neighborhood.

136
00:21:02.520 --> 00:21:06.229
Board Room: I'm angry that the city that I love allowed an accident that should not have happened.

137
00:21:06.710 --> 00:21:16.029

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: I'm not asking you, I'm telling you, there needs to be an immediate change. Whether that be a pedestrian blinking light, or something more, but it needs to be done now, and not in a year.

138
00:21:16.230 --> 00:21:17.040
Board Room: Thinking.

139
00:21:17.390 --> 00:21:18.520
Board Room: Thank you.

140
00:21:21.800 --> 00:21:27.230
Board Room: I'm so sorry that happened to you, and I really appreciate you being here and sharing that with us today.

141
00:21:30.740 --> 00:21:35.170
Board Room: James Arnold is the… Okay.

142
00:21:38.980 --> 00:21:47.609
Board Room: I've been here once before about animal rights and cow killing, and I'm telling y'all, you open up another campus burger on, Hayes Street.

143
00:21:47.610 --> 00:22:00.210
Board Room: And you can go to my website, animalrights74.wordpress.com, and you can learn about why you're not supposed to do that. And you've got a city of Berkeley, and you've got a damn government.

144
00:22:00.210 --> 00:22:12.260
Board Room: And he used to say, we don't want no more animal killers, we got enough animal killers in the city of Berkeley. And you open a new restaurant in Berkeley, you open a vegetarian hamburger spot, veggie burger spot.

145
00:22:12.510 --> 00:22:37.190
Board Room: And you get with it because people can't change their diets on their own. They need scientists to change what's in their food for it, and they get sick changing their diets on their own. They listen to the chat GPT, tell them how to change their diet, and they get an iron deficiency, they go blind, or they, get other health problems, or whatever. And I'm telling y'all, the government's supposed to step up and regulate the animal killing out of existence.

146
00:22:37.190 --> 00:22:40.040

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: Or replace it with, ethical food.

147
00:22:40.510 --> 00:22:42.200
Board Room: Thank you.

148
00:22:43.770 --> 00:22:51.139
Board Room: There's one… Online commenter, and that's a phone number ending in 211.

149
00:22:58.570 --> 00:23:01.290
1510****211: Hi, good evening. So, our company…

150
00:23:01.560 --> 00:23:04.880
1510****211: Manager, Andy is some paper today, please read it all.

151
00:23:05.330 --> 00:23:06.640
1510****211: A bit of update.

152
00:23:06.870 --> 00:23:08.279
1510****211: Well, obviously.

153
00:23:08.450 --> 00:23:21.039
1510****211: Diane Early wanted the place rented by black tenants only, African American tenants only, which is what happened with the help of a councilman Baldwick. That's shameful. That's shameful.

154
00:23:21.460 --> 00:23:28.839
1510****211: I went to Florida State University during the horrible time when black people were treated like No words.

155
00:23:29.120 --> 00:23:32.679
1510****211: So, at the same time, we are hiring a new attorney.

156
00:23:32.920 --> 00:23:38.260
1510****211: And we're raising our claim against the city from $1 million.2 to $5 million.

157
00:23:38.430 --> 00:23:54.420
1510****211: This does not belong to this city, city of Berkeley, city of freedom. I was there in 1970s, 1960s and 70s, during the free speech

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

movement. Shame on you councilmen that ignored us. Shame on the mayor, again, who had this…

158
00:23:54.420 --> 00:24:02.790
1510****211: She went against his wish and demand. He also went against her boss, Liam Garland. He was a very good man. Liam Garland was a very good man.

159
00:24:04.220 --> 00:24:08.480
Board Room: Nick, well, there's another one, Maria Soul.

160
00:24:11.200 --> 00:24:17.269
maria sol: Yes, thank you very much, and I think we need a moment of silence to just breathe. It's…

161
00:24:27.570 --> 00:24:38.300
maria sol: all that we're trying to do, given the disparity and complexity and diversity of this beautiful community, but I'm wanting to address housing.

162
00:24:38.450 --> 00:24:48.849
maria sol: Because while we heard last week of the 19s really indicate to me the affordability Money for a blanket.

163
00:24:49.210 --> 00:25:06.019
maria sol: I'm really most concerned about the people that I was with today that are already in buildings that are being neglected by management companies, like the Howard Mabel and Alcatraz, and Sacramento. Their elevators have been down.

164
00:25:06.430 --> 00:25:10.309
maria sol: For a month, the people in wheelchairs are trapped.

165
00:25:11.070 --> 00:25:13.439
maria sol: And… they can't get out.

166
00:25:13.880 --> 00:25:15.800
maria sol: So, let's take care of what we've got.

167
00:25:15.800 --> 00:25:16.680
Board Room: Maria.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

168
00:25:16.680 --> 00:25:18.010
maria sol: Alright, thank you.

169
00:25:19.270 --> 00:25:23.790
Board Room: That was just 7 speakers. We do have a couple more cards in here.

170
00:25:24.720 --> 00:25:35.220
Board Room: We have, and this is only for people who haven't spoken already, Lola… Zerpoli?

171
00:25:35.690 --> 00:25:40.640
Board Room: She spoke. Jesus. Oh, okay. Richard Woods.

172
00:25:42.100 --> 00:25:45.370
Board Room: So… Okay, well, alright.

173
00:25:46.350 --> 00:25:49.319
Board Room: But that, that concludes non-agenda public comments.

174
00:25:50.660 --> 00:25:51.870
Board Room: Thank you.

175
00:25:52.630 --> 00:25:56.329
Board Room: Okay, we will move on now to our consent calendar.

176
00:25:56.540 --> 00:26:02.819
Board Room: So at this time, if there are any council members who have comments on consent, can you please press your button?

177
00:26:05.280 --> 00:26:06.260
Board Room: Thank you.

178
00:26:06.470 --> 00:26:07.830
Board Room: Vice Mayor Lunapara?

179
00:26:09.180 --> 00:26:10.000
Board Room: Thank you.

180

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:26:10.640 --> 00:26:27.330
Board Room: On item 19, resolution urging Minnesota Governor Tim Walz to enact an eviction moratorium to prevent displacement during the ongoing ICBP terror campaign, I want to thank my co-sponsors, Councilmember Bartlett, Triggup, and Blackbee for their support.

181
00:26:27.420 --> 00:26:44.660
Board Room: And Board Chair Solly Alpert for his partnership in drafting the initial item that we passed at the 4x4 Committee. We introduced this item at the urging of members of the Minneapolis and St. Paul City Councils, which both unanimously passed their own resolutions in January.

182
00:26:45.040 --> 00:26:56.800
Board Room: essentially, eviction moratoriums in the state of Minnesota operate differently than in California, where the state has to authorize, an eviction moratorium for it to be put in place.

183
00:26:57.240 --> 00:27:05.540
Board Room: I would also like to give $200 to items 16 and 17, respectively. Thank you to those authors.

184
00:27:05.730 --> 00:27:08.410
Board Room: And I also want to…

185
00:27:08.680 --> 00:27:26.499
Board Room: mark that February 19th is the day of remembrance of the internment of over 120,000 Japanese Americans under Executive Order 9066, signed by President Roosevelt in 1942. And it's important to take a moment to honor, those who were stripped of their rights at this time.

186
00:27:26.940 --> 00:27:27.660
Board Room: Thanks.

187
00:27:28.890 --> 00:27:36.820
Board Room: Thank you. Appreciate you bringing in the ancestors. Can we move on to Councilmember Blackaby, please?

188
00:27:37.050 --> 00:27:54.119
Board Room: Thanks, Madam Mayor. As the auditor mentioned, I'd ask colleagues if we could move item 25, which was the information report on performance metrics, and move that as the first item on the action calendar. So if I had support from a couple of colleagues to do that, I'd appreciate that.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

189
00:27:54.600 --> 00:28:11.789
Board Room: I will. I support. I think that's 3 total, but so we're good. Thank you. and look forward to talking about that in a moment. I'd like to add, $250 from our office account to the Waterside Workshop's Community Spring Fling in Item 16.

190
00:28:11.790 --> 00:28:25.589
Board Room: Thank you for bringing that forward to, Mary Shee and Councilmember Taplan. And then on item 17, similarly, $250 for the Berkeley Unified School District Historical Study, thanks to Councilmember Bartlett for bringing that forward.

191
00:28:25.590 --> 00:28:42.309
Board Room: And then, brief comment on, information items 22 and 23, which was the investment returns on the city portfolio from Q4 and Q1. Just note, and we've been having some discussions, in the Budget Committee and in other places about, you know, ways to,

192
00:28:42.310 --> 00:29:00.479
Board Room: identify additional revenue. At the same time, we're heading into this sort of major budget crunch, and had some conversations with finance staff. I'll note that, the reports mentioned that our return is about 117 basis points in the recent quarter, 127 basis points in the Q4 quarter.

193
00:29:00.480 --> 00:29:14.809
Board Room: below the state benchmark, partially based on the duration of what we hold in the portfolio, but also, I think, some policies that we've set as a council in past years that also constrain what the finance team, can do, and so I look forward to

194
00:29:14.810 --> 00:29:25.579
Board Room: Looking at that, and as a potential source of additional revenue, if we can, again, sort of, give the finance team more tools to invest our portfolio

195
00:29:25.650 --> 00:29:37.950
Board Room: carefully, but also in a way that's going to generate a larger return over time. So I think that's going to be an important thing that we look at in the Budget Committee and in other places as we go forward. And that's my comments. Thank you.

196
00:29:38.170 --> 00:29:41.769

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: Thank you very much, Councilmember. Moving on to Councilmember Taplin.

197
00:29:41.940 --> 00:29:44.020
Board Room: Thank you, Madam Mayor. Good evening, everyone.

198
00:29:44.130 --> 00:29:48.140
Board Room: On item 17, I would like to be recorded as relinquishing $500.

199
00:29:48.280 --> 00:29:54.750
Board Room: And I request, to be added as a co-sponsor if Councilmember Barlett is amenable.

200
00:29:55.210 --> 00:29:56.210
Board Room: Thank you very much.

201
00:29:57.940 --> 00:30:01.049
Board Room: Thank you very much. Moving on to Councilmember Treykop.

202
00:30:02.010 --> 00:30:03.499
Board Room: Thank you, Madam Mayor.

203
00:30:03.850 --> 00:30:15.840
Board Room: on item… 16, I wish to relinquish $250 from my D13 account for Waterside Workshops Communities Spring Fling.

204
00:30:16.460 --> 00:30:21.809
Board Room: And thank the Mayor for bringing forward this item on item 17.

205
00:30:22.060 --> 00:30:27.589
Board Room: I wish to, again, relinquish $250 from my D13 account.

206
00:30:27.980 --> 00:30:36.829
Board Room: to support the BUSD Historical Study, and would be honored to be added in as a co-sponsor.

207
00:30:37.730 --> 00:30:40.259
Board Room: With the permission of the author.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

208
00:30:40.770 --> 00:30:42.880
Board Room: And my gratitude for this item.

209
00:30:43.950 --> 00:30:51.060
Board Room: On item 18, I would like to thank the Land Use, Housing, and Economic Development Committee.

210
00:30:51.260 --> 00:30:53.099
Board Room: The 4x4 Committee.

211
00:30:53.270 --> 00:30:59.959
Board Room: And my co-sponsors, Councilmember Bartlett and Councilmember Taplin, for this referral.

212
00:31:00.280 --> 00:31:05.330
Board Room: which would remove An on-site manager exemption loophole.

213
00:31:05.490 --> 00:31:14.940
Board Room: For certain multifamily properties that… Are adjacent to each other, and or share the same common area.

214
00:31:15.200 --> 00:31:25.280
Board Room: Which has been an issue in some properties, not just around habitability and level of services provided to the tenants.

215
00:31:25.540 --> 00:31:30.540
Board Room: But also has, at times, become led to…

216
00:31:30.800 --> 00:31:47.060
Board Room: Trash being, pulled outside without any collection, because there's no on-site manager, which has become an eyesore at best, and sometimes has led to code enforcement in actions in such properties.

217
00:31:47.540 --> 00:31:53.530
Board Room: On item 19, I would like to thank Vice Mayor Luna Parra.

218
00:31:53.680 --> 00:31:55.640
Board Room: For this resolution.

219
00:31:55.940 --> 00:31:57.670

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: And,

220
00:31:58.780 --> 00:32:04.639
Board Room: It was an honor to be a co-sponsor to this item. And those are my comments. Thanks so much.

221
00:32:05.290 --> 00:32:08.390
Board Room: Thank you, Councilmember. Moving on to Councilmember Bartlett.

222
00:32:09.300 --> 00:32:17.390
Board Room: Thank you, Madam Mayor. I'd like to, contribute $250 to item 16, the Waterside Workshops, Spring Fling.

223
00:32:17.510 --> 00:32:20.850
Board Room: Thank you for bringing that up, Madam Mayor and, Councilmember Taplin.

224
00:32:21.140 --> 00:32:25.360
Board Room: It's a lot of fun. And then I'd like to,

225
00:32:26.610 --> 00:32:44.509
Board Room: Obviously, thank, Councilmember… I'd like to thank the Vice Mayor for your item around the eviction moratorium request in Minnesota. I think evictions are bad everywhere all the time, but it's one good chance to put it out there in the ether. And I'd like to thank everyone for item 17. This is the,

226
00:32:44.690 --> 00:32:57.990
Board Room: This is the BUSD effort to achieve a reparations sort of framework, and so this resolution comes to us because people are asking for support to help the college kids do the research on it.

227
00:32:57.990 --> 00:33:14.279
Board Room: On history part, so happy to help. And it does, and it's close to home, because I gotta tell ya, it's with great tragedy that, I must tell you that, we did fail in delivering reparations, that this office authored and this council passed.

228
00:33:14.350 --> 00:33:25.029
Board Room: A couple of years ago, it is not happening, and where I'm unable to deliver that, at least I can support our neighbors in the BUSD in, making it happen. Thank you.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

229
00:33:25.890 --> 00:33:28.380
Board Room: Thank you very much, Councilmember. Councilmember O'Keefe?

230
00:33:30.660 --> 00:33:36.009
Board Room: Oh, I'd like to be recorded as donating $250 to item 16, and also to item 17.

231
00:33:37.080 --> 00:33:41.409
Board Room: Thank you very much. Council Member… oh.

232
00:33:42.650 --> 00:33:49.000
Board Room: Okay. Sorry, the parliamentarian is glitching. I'm gonna go with Councilmember Humbert.

233
00:33:49.580 --> 00:34:03.490
Board Room: Thank you, Madam Mayor. I'd like to donate, $250 on item 16 to the wonderful Waterside Workshops for their community spring fling. They do such good work. Thank you.

234
00:34:03.570 --> 00:34:16.710
Board Room: to, the mayor and Councilmember Taplin for… for bringing this one. On 17, $250 also, of, from our, office budget.

235
00:34:16.770 --> 00:34:25.490
Board Room: to the, to supporting the research for the, historical study. I think that's very important. And then, number…

236
00:34:27.170 --> 00:34:29.329
Board Room: 19. Thank you.

237
00:34:29.679 --> 00:34:45.849
Board Room: Vice Mayor Lunapara for authoring this, and to all the co-sponsors. I think it's critically, critically important to provide some relief to tenants in Minneapolis in the wake of the terror campaign. So, thank you so much.

238
00:34:47.179 --> 00:34:50.780
Board Room: Thank you. Speaking of, going back to Vice Mayor Lunapat.

239
00:34:51.090 --> 00:34:54.150

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: Thank you. I actually, I wanted to change my,

240
00:34:54.320 --> 00:34:58.499
Board Room: My discretionary fund donation to item 17 to $500.

241
00:34:58.620 --> 00:35:00.410
Board Room: Please. Thank you.

242
00:35:04.320 --> 00:35:24.719
Board Room: Okay, thank you all so much. I have a few comments as well. I really want to express my appreciation to city staff for working in partnership with the Association of Bay Area Governments, ABAG, and the San Francisco Estuary Partnership, SFEP, in partnership with the cities of Berkeley, Albany, Emeryville, and Oakland to secure two

243
00:35:24.800 --> 00:35:39.700
Board Room: $2,240,000, of which $223,000 will be for Berkeley over two and a half years for the East Bay Crescent Sub-Regional Vulnerability Assessment and Shoreline Adaptation Planning Project.

244
00:35:39.770 --> 00:36:04.480
Board Room: Adaptation to sea level rise is a challenge, and we must face across… that we must face across all of our jurisdictions. So, always like to highlight when staff bring in more funding into our city. And of course, I want to thank the Waterside Workshop, and for all the work that they do to support our community, and thank you to all the council members who contributed to item 16, their spring fling, and of course, to Councilmember Taplin, who, brought this item with me, and… and also

245
00:36:04.480 --> 00:36:06.299
Board Room: It's, of course, in his district.

246
00:36:06.340 --> 00:36:19.460
Board Room: Thank you to Councilmember Bartlett for allowing me also to be on item number 17, which is the BUSD historical study, and my office is relinquishing $250 to this study.

247
00:36:19.460 --> 00:36:29.820
Board Room: And, this is particularly important since I was on the BUSD Reparations Task Force and was involved in the community group that, from 2020 to

248
00:36:29.830 --> 00:36:33.850

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: To the time when we actually got the, the…

249
00:36:33.970 --> 00:36:39.449
Board Room: Task Force, advocated for that task force to exist, and one of the,

250
00:36:39.520 --> 00:36:48.720
Board Room: parts of the report, the request that came out of it, was this historical study. So it's very exciting to see that the district is moving forward on this, and that we're able to contribute to that effort.

251
00:36:48.720 --> 00:37:09.239
Board Room: Lastly, I want to express appreciation for the Safe Streets Oversight Committee and the Department of Public Works for all the work they've been doing to ensure the voter-approved Measure FF tax dollars are being utilized effectively and efficiently. This accountability is baked into the tax measure, and I look forward to seeing future presentations and execution of projects under Measure FF.

252
00:37:09.240 --> 00:37:17.379
Board Room: We really think it's important to bring it back to folks and make sure they know that we're using this money wisely, so thank you all very much, and, I will…

253
00:37:17.430 --> 00:37:28.140
Board Room: Now, open us up for public comment, if there's any public comment on consent calendar information items only.

254
00:37:33.430 --> 00:37:34.659
Board Room: Carol, come on up.

255
00:37:36.840 --> 00:37:48.659
Board Room: Because I heard the budget referenced, I am wondering how AB339 is going to impact our budget. I mean, this is clearly between staff and council,

256
00:37:49.190 --> 00:38:03.930
Board Room: Council, and the unions, but given that this is, relates to our contractors, whether they're new contractors or contractors, that are have up for renewal of contracts, it seems as if…

257
00:38:03.960 --> 00:38:17.480

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: It might be wise to involve commissions to the extent that that's feasible, in… with some advisory input in terms of the contractors that we've been working with. Thank you.

258
00:38:17.970 --> 00:38:19.260
Board Room: Thanks, Carol.

259
00:38:29.790 --> 00:38:44.470
Board Room: Hi, Rebecca Grove, Director of Waterside Workshops, just here to say thank you all for supporting our Spring Fling. We are launching our street-level cycles… cycling club, so if you want to join a cycling club, they'll be taking off

260
00:38:44.580 --> 00:38:53.169
Board Room: At 8 AM, and then our cookout, starts at noon, and the mayor's gonna speak. We're doing tsunami, preparedness and awareness as well.

261
00:38:53.400 --> 00:38:58.160
Board Room: collaborated with that office, the Emergency Preparedness Office. So, thanks again.

262
00:38:58.850 --> 00:39:01.169
Board Room: It's great, thank you, thank you so much.

263
00:39:01.300 --> 00:39:08.689
Board Room: Anyone online for… Public comment for consent calendar information items only?

264
00:39:08.840 --> 00:39:13.290
Board Room: Okay, there's one raised hand for public comments on Zoom.

265
00:39:13.590 --> 00:39:17.109
Board Room: It's a phone number ending in 000.

266
00:39:21.450 --> 00:39:27.330
1510****000: Hi, good evening. Now, let's talk about, the situation, you know.

267
00:39:27.560 --> 00:39:33.990
1510****000: the city should be, offered for immigrants. And immigrants build this up, made this country.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

268
00:39:34.090 --> 00:39:42.969
1510****000: While 1.3 million Americans died from COVID because Trump first administration, he denied it. He called it China Hoax, he called it all kinds of stupid things.

269
00:39:43.560 --> 00:39:54.679
1510****000: immigrants built this country. The man who brought us, the vaccine, one's Greek-American, Moderna, one, is,

270
00:39:54.680 --> 00:39:55.609
Board Room: Sorry, is this…

271
00:39:55.610 --> 00:39:56.580
1510****000: Lebanese? American.

272
00:39:56.580 --> 00:39:59.460
Board Room: Something on consent calendar, or information items?

273
00:39:59.460 --> 00:40:03.009
1510****000: Yes, consent… consent item number 19.

274
00:40:03.380 --> 00:40:04.660
1510****000: Sanctioned city.

275
00:40:05.010 --> 00:40:06.330
1510****000: Thank you, Sun City.

276
00:40:06.450 --> 00:40:12.989
1510****000: So, we need… right now, we have a monaster in the White House. As I said before, now you're going after immigrants.

277
00:40:13.380 --> 00:40:21.150
1510****000: is going after everybody, me, you, and everybody. It is a totally… disgusting situation.

278
00:40:21.390 --> 00:40:22.379
1510****000: Have a good night.

279
00:40:23.460 --> 00:40:24.460

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: Thank you!

280
00:40:24.870 --> 00:40:26.310
Board Room: Anyone else online?

281
00:40:26.750 --> 00:40:32.940
Board Room: Nope, that's it. Okay, very good. Is there a motion to approve the consent calendar? So moved. Second.

282
00:40:33.100 --> 00:40:36.719
Board Room: Is there any opposition to approving the consent calendar?

283
00:40:37.370 --> 00:40:42.319
Board Room: Alright, I'll have us all marked as ayes, and the consent calendar has been approved. Thank you all very much.

284
00:40:42.780 --> 00:40:57.300
Board Room: Alright, moving on to our action calendar. So, we have moved an item, from the, excuse me, from the information items onto the action calendar. So I will ask

285
00:40:57.470 --> 00:41:04.659
Board Room: our auditor, I know you're getting set up right now, but if you can also present Whenever you're ready.

286
00:41:13.430 --> 00:41:16.679
Board Room: Alright, good evening, and thank you for having me here today.

287
00:41:16.990 --> 00:41:26.300
Board Room: On February 5th, my office released a special report titled, A Guide to Measuring Performance in the City of Berkeley. I will provide…

288
00:41:26.620 --> 00:41:37.009
Board Room: an overview of that report, including the report purpose, research process, and opportunities for management consideration on Berkeley's performance measures.

289
00:41:37.370 --> 00:41:38.659
Board Room: from the report.

290

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:41:40.020 --> 00:41:41.010
Board Room: So…

291
00:41:41.530 --> 00:41:53.290
Board Room: Our purpose. We developed this report in response to a request from Councilmember Blackaby, asking our office to conduct benchmarking and best practice research on outcome-based budget metrics.

292
00:41:53.340 --> 00:42:03.629
Board Room: This was following a related item he authored requesting the City Manager to develop 10 to 20 measurable goals and metrics that reflect key priorities in the city.

293
00:42:04.330 --> 00:42:10.040
Board Room: Our purpose was to provide a framework for developing quality performance measures in Berkeley.

294
00:42:10.720 --> 00:42:12.440
Board Room: What is a performance measure?

295
00:42:13.200 --> 00:42:25.310
Board Room: Those of you who are not in the world that I, you know, in on this information, a performance measure is really just a qualitative or quantitative assessment of an agency's work.

296
00:42:25.430 --> 00:42:38.510
Board Room: In other words, performance measures can tell you how much or how well a program or service is doing. This can help prioritize the limited resources on specific goals during a budget deficit period.

297
00:42:39.060 --> 00:42:50.279
Board Room: The report also summarizes best practice, research, and information from other cities. It also provides opportunities for management consideration in… regarding performance measurement.

298
00:42:50.590 --> 00:42:51.870
Board Room: in Berkeley.

299
00:42:53.450 --> 00:42:58.290
Board Room: The report provides a framework for developing these measures. What does this mean?

300

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:42:58.670 --> 00:43:11.910
Board Room: Well, this starts with identifying the people served by a department or program, as well as that population's needs. Understanding who the primary audience is helps to clarify what success should look like.

301
00:43:12.140 --> 00:43:25.680
Board Room: Departments should then identify desired outcomes based on those needs, and determine how to measure those outcomes. One question to ask during this process is, how will people know whether something is successful?

302
00:43:26.020 --> 00:43:36.260
Board Room: Further steps include developing a data collection process for outcomes, establishing baselines and targets, as well as a reporting method.

303
00:43:36.650 --> 00:43:43.710
Board Room: This process should result in clear, measurable outcomes representing the issues that matter most to the Berkeley community.

304
00:43:43.880 --> 00:43:53.139
Board Room: A comprehensive process to develop quality measures can take some time, I want to make sure to acknowledge that, and may require additional resources.

305
00:43:53.350 --> 00:44:03.109
Board Room: However, identifying one or two measures in each department that addresses the most important priorities and impacts could be a great starting point to this work.

306
00:44:03.560 --> 00:44:08.689
Board Room: For more information on how to implement this framework, you can take a look at our report on our website.

307
00:44:09.320 --> 00:44:23.369
Board Room: The report also provides an overview of performance measurement in Berkeley. The City first reported on performance measures in fiscal year 2022's budget book, and continue to report measures in two following budgets.

308
00:44:23.610 --> 00:44:29.800
Board Room: The budget book is the most centralized location to access performance measurement data currently in Berkeley.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

309
00:44:30.410 --> 00:44:42.969
Board Room: We selected 3 city departments to highlight. Given the limited amount of time, we just looked at 3 city… or 3 departments. IT, Parks, Rec, and Waterfront, and Police.

310
00:44:43.100 --> 00:44:53.239
Board Room: The report includes tables showing their performance reporting from the past three budgets. We also interviewed leadership from these departments to understand their process for measuring performance.

311
00:44:54.310 --> 00:45:02.560
Board Room: Our analysis includes a review of other cities as well, where we identified common themes and how other cities measure and report performance.

312
00:45:02.620 --> 00:45:14.940
Board Room: There are some common performance measures reported in other cities. For example, one common measure in other IT departments is the number or percent of service requests completed in a given time frame.

313
00:45:15.150 --> 00:45:21.969
Board Room: Other parks departments often measure the customer satisfaction rating for parks or recreation programming.

314
00:45:22.560 --> 00:45:41.119
Board Room: A common measure in other police departments is the average response times for emergency services. Berkeley Police report average 911 call response times in their annual report, though this is not included in the budget book. So we're seeing things in other places, but having it in a centralized place could be helpful.

315
00:45:41.580 --> 00:45:44.670
Board Room: We provide other examples of common measures in our report.

316
00:45:45.020 --> 00:46:00.499
Board Room: We also found common themes in how other cities report their data. For example, most cities use standardized reporting periods and report performance at least annually. Most cities also include this data from previous years in their budget books.

317
00:46:00.790 --> 00:46:11.809

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: Some benchmark cities also follow an innovative process known as outcome-based budgeting, which means they make budget decisions and allocate resources based on key goals or outcomes.

318
00:46:12.240 --> 00:46:19.659
Board Room: Lastly, we identified opportunities for management consideration based on best practices and insights from comparable cities.

319
00:46:19.830 --> 00:46:32.909
Board Room: First, management could consider organizing and streamlining performance measure reporting efforts. Maintaining the same measures over time and using standard reporting periods could support comparability across years.

320
00:46:33.220 --> 00:46:39.960
Board Room: Additionally, the City could revisit the strategic plan goals and alignment of these performance measures.

321
00:46:40.110 --> 00:46:58.189
Board Room: Finally, management could explore outcome-based budgeting. While this process typically requires additional resources, departments could implement outcome-based budgeting on a smaller scale. For example, departments could develop more outcome-oriented measures and relate those measures to their overall goals.

322
00:46:58.240 --> 00:47:09.920
Board Room: And they could also assess how much of their budget is allocated towards achieving those goals. Over time, this work can strengthen the connection between resources, activities, and results.

323
00:47:12.240 --> 00:47:29.910
Board Room: We'd like to thank the department staff and leadership in IT, police, and parks, Rec and Waterfront for their assistance in this report. Thank you to Councilmember Blackaby for this request, and to my team, Kendall Kuchley and Aaron Mullen, and we're happy to answer any questions.

324
00:47:30.590 --> 00:47:37.769
Board Room: Thank you, thanks so much for your presentation. I'm glad you were able to give a more, in-depth

325
00:47:37.980 --> 00:47:45.349

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: look into your audit. I know that we have some questions, so I'll go to Councilmember Blackaby.

326
00:47:45.600 --> 00:47:57.320
Board Room: Thanks, Madam Mayor, and thanks to the auditor and your team for doing this really important work in such a short time frame. I know it's not a full audit, it was just some guideposts for us to follow, so I appreciate your partnership and support.

327
00:47:57.320 --> 00:48:06.139
Board Room: in December, as the Otter mentioned, our office authored an item called Setting Measurable Goals and Metrics for Key City Priorities.

328
00:48:06.210 --> 00:48:17.150
Board Room: Emphasizing the importance of creating performance measures that reflect what matters most to our residents, and clearly demonstrate both the impact of city government and the overall quality of life in our community.

329
00:48:17.160 --> 00:48:25.890
Board Room: We've started the process of moving it through the committee process. I appreciate the feedback by the Health, Life Enrichment, Equity, and Community Committee.

330
00:48:25.890 --> 00:48:38.559
Board Room: We'll be bringing the item back in the coming weeks to the Council, so you'll see it, but we've got some good feedback from that process as well. The research in this report from the auditor, benchmarking our practices against peer cities.

331
00:48:38.560 --> 00:48:54.740
Board Room: Outlining best practices and performance measurement overall and offering forward-looking recommendations provides a strong foundation for this work. It's going to be an invaluable resource for staff as we move forward toward a more data-driven, transparent, and outcomes-focused budgeting process.

332
00:48:54.740 --> 00:49:12.539
Board Room: I also want to thank the City Manager and his team. We've already had a wide range of conversations on this topic, and as we're moving into the budget period, I know that a lot of this work is already beginning, and so I just want to appreciate what the City Manager is doing and his willingness to embark with us on this journey.

333

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:49:12.570 --> 00:49:16.680
Board Room: Couple questions, for the auditor.

334
00:49:16.970 --> 00:49:28.359
Board Room: you mentioned it before, I mean, this could be a very broad project. I don't think any of us wants this to be a boil-the-ocean, kind of project. We really, especially in the short term, want to get to something that's

335
00:49:28.500 --> 00:49:43.970
Board Room: usable quickly. And you'd kind of mentioned that, as you looked at each of the departments, there's, you know, a given department may have a lot of different performance metrics that they're looking at, but the idea here at some point is to bubble up a few things from each department that becomes something that the city can look at.

336
00:49:43.970 --> 00:49:56.200
Board Room: Just wanted you to maybe kind of comment on that. Is that the right way, maybe, to be thinking about this? Because, again, I don't think any of us want this to be a two-year exercise. This is, let's get something that's usable sooner.

337
00:49:57.240 --> 00:50:00.840
Board Room: Yeah, I, I think we, you know.

338
00:50:01.420 --> 00:50:12.159
Board Room: I studied performance measurement and metrics back in grad school, and I did some of this work when I was in New York City, and so to do a really robust effort, it does take

339
00:50:12.450 --> 00:50:21.569
Board Room: more time and more effort, and more resources. My recommendation, for the time being is to…

340
00:50:21.740 --> 00:50:24.219
Board Room: Really look at what's…

341
00:50:24.270 --> 00:50:35.190
Board Room: you know, what's one or two metrics that can really help you, not only capture the work you do, but communicate that work to the public? You know, as…

342
00:50:35.190 --> 00:50:49.480

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: as I mentioned, in the police department, being able to communicate what those 911 response times are, and that, that was something that we actually looked at in a previous audit on, response times.

343
00:50:49.480 --> 00:50:59.230
Board Room: And through that, we're able to communicate when we were not hitting the targets, and that also can sometimes jeopardize additional funding.

344
00:50:59.230 --> 00:51:15.720
Board Room: I think honing in on one or two metrics, in each department, and of course, some departments are much bigger, so they're gonna… they're gonna need more metrics to really tell their story and be able to share what they do, but I think at the very,

345
00:51:15.780 --> 00:51:20.919
Board Room: At the start, really honing in on one or two is… can be really helpful.

346
00:51:20.950 --> 00:51:36.529
Board Room: And he thought, like, there may also be things that we value as a community that may not be directly tied to a department specifically. It may just be that we want to… well, this one may not be a good example, but we want to build more units of affordable housing. We may not have the direct ability to do that. We can set the…

347
00:51:36.530 --> 00:51:41.960
Board Room: Circumstances, and the process in place to move it, but at some point, market forces and other things.

348
00:51:41.980 --> 00:51:51.279
Board Room: Is there also some value in having a few of those other things, or was your recommendation sort of sticking towards, something that's more directly tied to department output?

349
00:51:52.790 --> 00:52:09.620
Board Room: I think it really depends on what is the… the value, for this, community. And sometimes, as you know, a metric is not directly tied to just one department, or…

350
00:52:09.620 --> 00:52:23.710

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: not specifically within one department's control. And sometimes there are external forces that are not within the control as well. So, I think it's really a matter of

351
00:52:23.710 --> 00:52:33.249
Board Room: deciding what is of most importance, and being able to track that. If the metric is not something that is going to be…

352
00:52:34.600 --> 00:52:46.130
Board Room: you know, that government is not able to actually address, then, it's probably a nice-to-have, but not something that…

353
00:52:46.480 --> 00:52:55.389
Board Room: will, you know, be meaningful. Ultimately, this is about, designing meaningful metrics so that you can really show what

354
00:52:55.400 --> 00:53:12.730
Board Room: what… and being able to tease out what is within a department's control and what isn't, you know, that's a whole other exercise, too. So, again, a lot of this will take more effort and more energy, but I'm just… I'm hopeful that

355
00:53:12.730 --> 00:53:20.730
Board Room: you know, that conversation is happening, going forward. Great. You mentioned a few jurisdictions in the report. I mean, are there any…

356
00:53:20.870 --> 00:53:34.690
Board Room: Are there any particular jurisdictions that we would hold up and say, wow, we want to be like X? I mean, or do you think it's kind of a mix and different people are doing it well in different ways? I mean, but is there… are there one or two that we should just try and emulate? Or is this kind of breaking some ground here?

357
00:53:35.900 --> 00:53:47.229
Board Room: Yeah, we didn't look at this in that level of detail. I mean, Kendall did a lot of really great research, throughout this, but I think…

358
00:53:47.470 --> 00:53:52.760
Board Room: I think it really depends on what specific metric you're looking at.

359
00:53:53.000 --> 00:53:56.830

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: you know, I think… and different…

360
00:53:56.940 --> 00:54:02.460
Board Room: different, jurisdictions also report out on their metrics differently. Some…

361
00:54:02.610 --> 00:54:09.420
Board Room: I think Oakland has a data dashboard, but, you know.

362
00:54:09.600 --> 00:54:11.930
Board Room: Is that right? They have a data dashboard.

363
00:54:14.690 --> 00:54:23.699
Board Room: Pasadena. Oh, Pasadena, I'm sorry, has, the data dashboard. I think Oakland has their budget in a, in a, you know.

364
00:54:24.010 --> 00:54:39.319
Board Room: and a dashboard, so that you can look at… look at it that way. So, there are other jurisdictions, that report it out in different ways, but I think at the… at the… I think one of the things that I think we can really add value to is

365
00:54:39.430 --> 00:54:50.379
Board Room: just capturing the same metrics over time, so then you can see the trend line, and you can see, oh, how has something changed? When you add a new metric.

366
00:54:50.430 --> 00:54:59.049
Board Room: but then you don't, include the data from the previous metric, then you can't really see what the differences are in the trends. So,

367
00:54:59.070 --> 00:55:17.300
Board Room: Yeah, I think if we had more time, we would… we would get you a lot more information. Yeah. Going back to the earlier conversation we had about with… on the health report, I mean, what I love about this is we're looking… we're looking… we're trying to go and trace this all the way through the outcomes. Like, not just what are we doing, but what's actually happening as a result of the work, and that's what I really love about this.

368
00:55:17.300 --> 00:55:29.099

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: Couple last things, just for the city manager. From the auditor's report, the great thing is, already many, if not all, departments are doing some amount of this work, which is fantastic, and so.

369
00:55:29.100 --> 00:55:42.039
Board Room: I think the question for the city manager is, you know, is that kind of a good foundation to build upon? It's not necessarily that we're reinventing the wheel, it's just that we're trying to elevate and synthesize. I mean, is that the right way maybe to think about it? It is, and…

370
00:55:42.210 --> 00:55:49.639
Board Room: Each of the departments is currently working on delivering, up to 5 outcome measures to me.

371
00:55:50.150 --> 00:55:53.260
Board Room: To be able to look at those and kind of… you know.

372
00:55:53.540 --> 00:55:58.400
Board Room: go through them and pick a couple for each department, so that'd be 24. There's 12 departments.

373
00:55:58.650 --> 00:56:09.140
Board Room: That we can… that we can report on regularly, and as you're saying, try to connect them up to, okay, here's what we're doing, and here's the result of… are people better off as a result of it?

374
00:56:09.470 --> 00:56:26.080
Board Room: Okay. Last thing, and back to the scope and scale question, I know, again, we want to do this right, we want to be transparent, we want to be outcome-oriented, but we also know that we want to… let's start somewhere and not, again, over… overthink it, and let's kind of put something in place just to get moving.

375
00:56:26.080 --> 00:56:31.199
Board Room: Any thoughts on sort of the scale, scope, you know, question about this? Couple thoughts.

376
00:56:31.490 --> 00:56:41.579
Board Room: We want to be mindful of, in a budget environment where we're reducing We're reducing, cutting expenses.

377

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:56:41.720 --> 00:56:46.340
Board Room: We have to be thoughtful about how much more work we are giving to staff, and, like.

378
00:56:46.590 --> 00:56:52.120
Board Room: What's the trade-off between giving staff assignments to come up with outcome measures as opposed to giving them assignments to actually do the work?

379
00:56:52.270 --> 00:56:54.939
Board Room: So being thoughtful about that balance is one thing.

380
00:56:55.590 --> 00:56:58.260
Board Room: Another is…

381
00:56:58.720 --> 00:57:15.880
Board Room: and this is connected to that, but being careful about selecting outcomes that we're not trying to create new data for. Like, if we're not currently collecting this data, that's probably not a good place for us to start, because that's a longer-term sort of project. It may be an important thing, and those are things we can surface.

382
00:57:15.880 --> 00:57:25.249
Board Room: But I think we should start with, like, we collect tons of data, and let's focus on, within that data, what's most important, and what can we track over time and report.

383
00:57:25.370 --> 00:57:34.890
Board Room: That, again, makes, life better for people. Great, thank you. Again, I just appreciate the collaboration and, the spirit with which I think everyone's moved forward here.

384
00:57:34.890 --> 00:57:53.570
Board Room: again, just being transparent, outcome-oriented, accountable, something that, you know, I know we've all heard from constituents, and to the extent that we can sort of demonstrate that and live those values and have a way of communicating, I think is really gonna put us in a better position, especially as we're going through tough budget times where we're gonna have to

385
00:57:53.720 --> 00:58:04.440
Board Room: you know, communicate some of the trade-offs that may be being made when it comes to costs and services. So, thanks to the

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

auditor, thanks to the City Manager, and thanks, Mayor, for giving us a little time to talk through this.

386
00:58:05.550 --> 00:58:17.440
Board Room: Thank you very much. Councilmember Bartlett has some questions as well. Thank you, Madam Mayor. And thank you, Councilor Blackby, for calling for this, and thank you, Madam Auditor and team, for delivering another great report.

387
00:58:17.500 --> 00:58:28.259
Board Room: Question just about the outcomes-based budgeting. Is that related to the pay-for-success models, or is it more just a reporting framework?

388
00:58:30.820 --> 00:58:42.000
Board Room: Can you… can you elaborate on that model that you're describing? Yeah, so Pay for Success, we passed something to this effect a while ago. It's related to, sort of.

389
00:58:42.310 --> 00:58:48.610
Board Room: you… the contractor wins if they succeed in our goal, right? So it's like impact bonds.

390
00:58:49.500 --> 00:58:57.539
Board Room: And there are similar languages… there's similar language around outcomes-based models. I'm just curious if, if that's related in your…

391
00:58:57.710 --> 00:58:59.130
Board Room: In your research at all.

392
00:59:03.160 --> 00:59:15.269
Board Room: Yeah, I… I'll have to do a little more research on this other model that you're describing, but the outcome-based modeling is really aimed at, you know, there are a variety of different

393
00:59:15.630 --> 00:59:29.049
Board Room: types of, measures that you can look at, and you can look at outputs, for example, but that may not necessarily be the same as outcome-based. And so, one of the…

394
00:59:29.190 --> 00:59:48.629

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: you know, when I studied this and did some of this work previously, looking at it from an outcome-based perspective is obviously much better, because you're really looking at what is the ultimate outcome that you're trying to achieve, what is the goal, and what are you trying to achieve. And outputs can sometimes get you

395
00:59:48.650 --> 01:00:05.939
Board Room: to, a portion there, it can give you a piece of data, but it may not necessarily get you to the actual outcome you're trying to achieve. So, it sounds like this model might be related in some way, and I'm happy to discuss more, at a future meeting.

396
01:00:07.050 --> 01:00:09.439
Board Room: Thank you, Councilmember Trekup.

397
01:00:11.020 --> 01:00:21.570
Board Room: Thank you, Madam Mayor. Appreciate, you and Councilmember Blackaby's, efforts in moving this, for,

398
01:00:21.710 --> 01:00:27.339
Board Room: So we can discuss it, and thank you so much, Madam Auditor, for this report.

399
01:00:30.600 --> 01:00:50.079
Board Room: Several of my questions did also get, asked by Councilmember Blackaby, so I'm not going to ask them. Just very broad strokes, I, I appreciate, the reports, honing in on the three recommendations.

400
01:00:50.320 --> 01:01:01.620
Board Room: Particularly, I appreciate the focus on performance-based budgeting. This is something that, I used to do in, my first career.

401
01:01:01.620 --> 01:01:18.549
Board Room: And I found it to be very beneficial. And one thing that I remember that was kind of ingrained in that is looking at the critical view. What are these, cross-cutting metrics that are objective and,

402
01:01:18.550 --> 01:01:23.859
Board Room: really help us see the trend lines, but are, so…

403
01:01:23.930 --> 01:01:28.129
Board Room: high level that, they,

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

404
01:01:28.750 --> 01:01:44.010
Board Room: provide meaningful data while not distracting, us from having a lot of noise in the data, or a lot of different other metrics. So, I… I just had, two questions,

405
01:01:44.270 --> 01:02:00.309
Board Room: So I just talked about these, wall-ups. I was wondering, Madam Auditor, if you have any recommendations for us, as the city, potentially moves to, doing…

406
01:02:00.500 --> 01:02:04.640
Board Room: More cross-cutting, metrics,

407
01:02:04.920 --> 01:02:10.790
Board Room: Looking at these critical few, Data points.

408
01:02:10.980 --> 01:02:22.509
Board Room: But there's going to be a gap, because this will be a change in methodology, perhaps, or at least a change in presentation of the data.

409
01:02:23.530 --> 01:02:40.859
Board Room: Are there any best practices, you might recommend, or that other jurisdictions are using, around, how do you go back and, fill in those gaps when you adjust to a new measurement system? So that's one question.

410
01:02:41.330 --> 01:02:45.660
Board Room: And the second one is, jeth,

411
01:02:46.820 --> 01:03:03.409
Board Room: Any, best practices around, having… Departments, come together, on… Cross-cutting metrics that are…

412
01:03:03.570 --> 01:03:11.660
Board Room: Meaningful, for the city, for the… to the council, to the city manager, while also,

413
01:03:11.920 --> 01:03:20.490
Board Room: Providing meaning to the departments themselves as they, have information that rolls up into these cross-cutting metrics.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

414
01:03:23.690 --> 01:03:33.530
Board Room: Yeah, thank you for your questions, Councilmember Tragob. So, you're… on the first point with regards to…

415
01:03:34.600 --> 01:03:45.340
Board Room: filling in the gap when you have new data, or you… I think what you were asking is perhaps you get new data or a new measure,

416
01:03:45.670 --> 01:03:55.009
Board Room: You know, that's why it's really important to really think through what are the most important measures, and think about how you might be able to

417
01:03:55.230 --> 01:04:01.419
Board Room: make sure that that measure is consistently tracked across, future years. Obviously, you can't…

418
01:04:01.630 --> 01:04:18.230
Board Room: We can't see the total future, but, really thinking through, okay, what programs have been in existence in the past and in the present, and what do we think might be going on in the future, and then tracking that all the way through, so…

419
01:04:18.230 --> 01:04:29.659
Board Room: Again, you know, I've talked about this. Really doing a robust dive into this area is gonna take time and effort and energy, and so,

420
01:04:30.410 --> 01:04:31.430
Board Room: you know.

421
01:04:31.730 --> 01:04:46.370
Board Room: obviously… and obviously, you're gonna have situations in which you get new information and new measures, and you just have to adjust for that, so it's not going to be perfect. You might get some additional new things that come up, but I think

422
01:04:46.490 --> 01:04:53.359
Board Room: Really sitting down, engaging staff, and so that's the part that is gonna take more effort.

423
01:04:53.410 --> 01:05:06.519

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: who are the folks that are working on the ground, in, collecting this information, or, or delivering the actual service? And… and so ensuring that

424
01:05:06.660 --> 01:05:15.729
Board Room: your identifying the right measures, is gonna take some time and effort. But… and then your second question about,

425
01:05:16.510 --> 01:05:33.370
Board Room: cross-cutting measures, that is something that I think, you know, I'm seeing a lot more engagement on the measures, at least, you know, during this budget cycle, and so I'm really glad to see that, there's

426
01:05:33.510 --> 01:05:51.650
Board Room: sharing of information across different departments, and so I think just learning about what other departments are capturing in terms of their measures, and knowing that some might affect your department, and being cognizant of what other departments are capturing is going to be really important.

427
01:05:51.670 --> 01:06:07.189
Board Room: And then communicating that information so that you're understanding how those measures can cut across from one department to another. So I think it's just, you know, making sure there's adequate communication and, adequate transparency and information.

428
01:06:07.900 --> 01:06:08.730
Board Room: You know?

429
01:06:09.560 --> 01:06:12.640
Board Room: Thank you very much. Any other questions from my Council colleagues?

430
01:06:13.240 --> 01:06:15.690
Board Room: Is there any public comment on this item?

431
01:06:24.330 --> 01:06:25.030
Board Room: Hi.

432
01:06:25.320 --> 01:06:26.180
Board Room: Can you hear me?

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

433
01:06:26.910 --> 01:06:34.089
Board Room: Hi, Mayor and Council, my name's Steve Cromer. Appreciate, Councilmember Black of you bringing this so we could talk about it.

434
01:06:34.240 --> 01:06:40.159
Board Room: And I really appreciate the report, Jenny. It's, great to see this. It's a little bit of deja vu. I think Brent, I mean,

435
01:06:40.660 --> 01:06:58.379
Board Room: Councilmember Bertlett, you're the only person that was on the dais when I stood up here, like, 8 years ago, and said, why can't we be radical Berkeley and do radical transparency? And I've always felt bad about that, because I thought it was sort of stupid, but now it's… here we are back, and it's like, it's great to see that there's this effort to, again.

436
01:06:58.650 --> 01:07:09.959
Board Room: follow up on it, but I think a lot of citizens like myself feel like we want more information so we can just see what decisions are being made and what's the basis for it. And communication from you all, to staff.

437
01:07:10.300 --> 01:07:15.829
Board Room: It's clear and open, and then to auditor, to the auditor can come back, you can all work together, it's like gears in a system, right?

438
01:07:15.970 --> 01:07:20.589
Board Room: She can help you with all assessing what's the first and earliest measures, and you can all help

439
01:07:20.720 --> 01:07:27.029
Board Room: work this all out. So, that's the… that's the big picture, thanks for that. We all hear about the structural deficit.

440
01:07:27.110 --> 01:07:43.609
Board Room: So there's, like, the, oh, no, no, oh, no, structural deficit. Well, the first thing anybody else does with a structural deficit is prioritize. And I realize, Paul, it's more information they have to collect to help do that prioritization, but some stuff's probably gonna have to, like, get shoved off the thing, and this is going to give you all tools to support that.

441
01:07:43.730 --> 01:07:46.910

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: Like, here's a clear way to say how you're gonna prioritize.

442
01:07:47.060 --> 01:07:51.930
Board Room: Further, I was honored to be asked to be one of the people that reviewed your bond issue coming. I,

443
01:07:52.060 --> 01:08:06.980
Board Room: Parks Director Scott Ferris, and you did a great job, Terry and Mayor Ishii. And we looked through a bunch of stuff there, and my question was, how are we going to prove any of this is working? How are we going to bake into your bond issue and the money you're going to ask for us from the ratepayers?

444
01:08:07.110 --> 01:08:19.289
Board Room: what's… how are we gonna know what's working, what's not? We haven't… we're in this situation because we haven't done that very well in the last… in the past. And everyone recognizes that. For 50, 60 years, we haven't done this. So, it's a great time to start.

445
01:08:19.520 --> 01:08:22.690
Board Room: It's just the start, lots of ways, long way to go.

446
01:08:23.029 --> 01:08:25.530
Board Room: But yeah, great, thank you, appreciate it.

447
01:08:25.930 --> 01:08:26.979
Board Room: Thank you.

448
01:08:29.240 --> 01:08:43.529
Board Room: Good evening, my name's Paul Matthew, and thank you for this opportunity to speak. I just want to… I came up here because I wanted to strongly support, the recommendations of this report, and I want to commend Auditor Wong, as well as Councilmember Blackby, and the other Councilmembers that are

449
01:08:43.529 --> 01:08:59.870
Board Room: supporting this effort. Again, from my view, performance metrics are not a nice-to-have. I mean, they're a must-have, they're essential. It blows my mind that, you know, this is even a discussion point, actually. We should be having these well-baked already for, what's it, an $800 million budget?

450
01:08:59.910 --> 01:09:06.830

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: I mean, and I think it's especially essential now for sound decision-making with voter concerns about tax increases, where

451
01:09:06.830 --> 01:09:22.259
Board Room: I'm just dreading the new taxes that are coming down the pike here, likely, and the quality… versus the quality and cost of public services, and there's a limit to how much you can just keep asking property owners to keep coughing up more and more and more without services improving.

452
01:09:22.260 --> 01:09:30.800
Board Room: So I think it's really important for voters, as well as for you, in terms of decision-making and trade-offs. Three suggestions as you move forward with this.

453
01:09:31.979 --> 01:09:47.579
Board Room: A, the metrics should really focus on outcomes and cost efficiency, not just activity. I noticed, like, in the report, the Parks Department has a metric that is number of community meetings attended. I mean, fine, that's good at some level, but really, the outcome we want is, you know.

454
01:09:47.580 --> 01:10:02.659
Board Room: cleanliness of parks, and things like that. We want really, citizen-oriented metrics. Likewise, number of miles of street paved, dollars per mile of street paved. How does it compare to Pleasanton, which has very nice roads, I would say.

455
01:10:02.660 --> 01:10:08.149
Board Room: Not that I want to live in Pleasanton, but, you know, I do, when I go there and see the roads, it's like, wow, why can't we do that?

456
01:10:08.680 --> 01:10:24.069
Board Room: So, that's the first one. The second one is that benchmark against peer cities, just as I said. Pasadena, I've seen their dashboard, it's pretty neat, actually. They really have a nice system up there. And finally, I think this was mentioned by Auditor Wong, as well as Councilmember Blackaby.

457
01:10:24.330 --> 01:10:39.009
Board Room: let's not try and boil the ocean. Let's start with something small. Maybe just three departments, like, things that matter to citizens are public safety… Thank you. So, yeah, let's start with a few. Thank you. Thank you very much. Is there other public comment on this item here in person?

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

458
01:10:39.740 --> 01:10:42.269
Board Room: Or perhaps online? Is there a public comment?

459
01:10:43.520 --> 01:10:46.960
Board Room: Okay, very good. Well, are there any comments?

460
01:10:47.060 --> 01:10:49.019
Board Room: from my council colleagues.

461
01:10:51.780 --> 01:10:53.509
Board Room: Yes, Vice Mayor Lunapara?

462
01:10:53.850 --> 01:10:59.769
Board Room: Thank you. I just really want to thank the auditor and her team for this work.

463
01:10:59.900 --> 01:11:02.039
Board Room: And I'm excited to continue working on it.

464
01:11:02.300 --> 01:11:05.239
Board Room: Thank you, and also Councilmember Blackaby for bringing it forward.

465
01:11:07.630 --> 01:11:10.829
Board Room: Okay. Any other comments, Council colleagues?

466
01:11:11.020 --> 01:11:20.289
Board Room: Okay, I also want to appreciate your report. Thank you very much, and also thank you to our city manager for working to implement already some of these pieces, so thank you.

467
01:11:20.720 --> 01:11:36.879
Board Room: All right, we are moving on to… oh, actually, we should move on to the next item, but I do want us to take, like, a 10-minute stretch break, so, we will be back in 10 minutes with item number 20, and that will also give them time to set up. So, thank you.

468
01:27:26.700 --> 01:27:32.479
Board Room: Hello! Okay, we're on, we're live!

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

469
01:27:32.510 --> 01:27:49.229
Board Room: Alright, everyone, thank you very much for your patience. We are starting back the Berkeley City Council meeting, and we are moving on to, excuse me, item number 20, Amendments to Title 21, the Subdivisions Ordinance, and Title 23, Zoning Ordinance.

470
01:27:49.230 --> 01:27:52.740
Board Room: to implement Senate Bill SB684.

471
01:27:52.740 --> 01:27:56.490
Board Room: I will pass it over to Jordan Klein. Thank you.

472
01:27:56.760 --> 01:28:13.700
Board Room: Thank you, Mayor Ishii, and good evening, council members. I'm Jordan Klein, I'm Director of Planning and Development, and I'm joined here at the staff table by Ann Hertz, the Land Use Planning Manager, Justin Horner, Principal Planner, and Branca Tatarevich, Associate Planner with the Policy Team. Before I turn it over to Branca.

473
01:28:13.800 --> 01:28:18.100
Board Room: To present, and why don't you pull up the slide deck. I want to call your attention to…

474
01:28:18.140 --> 01:28:27.040
Board Room: Revised materials that we have submitted and are requesting that you, accept, for consideration this evening.

475
01:28:27.070 --> 01:28:46.829
Board Room: Yesterday, we received input from staff at the Rent Stabilization Board who expressed concern about the wording of the definition of protected units, and so we reviewed their feedback and wanted to incorporate changes that address those concerns. And so…

476
01:28:46.830 --> 01:28:51.709
Board Room: That's, that's the purpose of these revised agenda materials. We don't believe that it…

477
01:28:51.710 --> 01:28:56.899
Board Room: It constitutes any substantive policy change, but it does clarify the language.

478
01:28:57.280 --> 01:29:02.400

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: So we hope that you will take action to accept this material.

479
01:29:04.740 --> 01:29:06.660
Board Room: Do we need to do that before?

480
01:29:06.900 --> 01:29:16.730
Board Room: Yeah. If you wouldn't mind doing… Yeah. …now, that'd be great. Is there a motion to, so moved. Second. Thank you. Is there any opposition?

481
01:29:16.970 --> 01:29:30.720
Board Room: Okay. We will review this revised material this evening. Thank you. Excuse me, Mr. Clerk, does that require… I think that's required to be a roll call vote.

482
01:29:31.270 --> 01:29:37.260
Board Room: 2 thirds? No. Yes. Alright, we will take the roll.

483
01:29:38.250 --> 01:29:55.069
Board Room: Thank you. Okay. To accept the revised material, Councilmember Kesarwani? Yes. Taplin? Yes. Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay.

484
01:29:55.460 --> 01:29:59.619
Board Room: Very good, thank you very much. Now you know, we're all awake, we're all here. Go ahead.

485
01:30:18.160 --> 01:30:21.589
Board Room: Thank you, Mayor Ishii and the members of the City Council.

486
01:30:21.900 --> 01:30:34.209
Board Room: My name is Brianca Tataric, and I'm an Associate Planner with the Land Use Planning Division. Tonight, I'm presenting an ordinance that amends Titles 21 and 23 to implement Senate Bill 684.

487
01:30:34.420 --> 01:30:54.090
Board Room: The ordinance establishes a ministerial SB684 compliant pathway for small lot subdivisions and the related housing development, and it also creates a streamlined local parcel map option for lower-density infill projects that don't qualify under SB684.

488

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:30:55.700 --> 01:31:03.240
Board Room: The Planning Commission reviewed the SB684 small lot subdivision item in the summer and fall of the last year.

489
01:31:03.580 --> 01:31:17.240
Board Room: The Commission first discussed SB684 in July, and then in October, it recommended adoption of the amendments to Title 21 subdivisions and Title 23 zoning to implement the small lot subdivision processes.

490
01:31:19.480 --> 01:31:37.990
Board Room: The policy intent beyond SB684 is to ministerially approve qualifying small lot subdivisions and the related housing development, reduce procedural barriers for ownership-oriented infill on service sites, and retain objective standards and health and safety protections.

491
01:31:38.440 --> 01:31:47.949
Board Room: In Berkeley, the implementation context is that the city's middle housing zoning updates increased maximum densities in several districts.

492
01:31:48.400 --> 01:32:00.050
Board Room: SB684 requires projects to meet 66% of the maximum allowable density, and with those higher maximums, smaller projects are unintentionally disqualified.

493
01:32:00.650 --> 01:32:11.709
Board Room: The reason to include a local parcel map middle housing infill project path is to provide a streamlined option for smaller infill that still meets minimum density.

494
01:32:16.130 --> 01:32:26.500
Board Room: Because SB684 projects include both a subdivision and housing development, the amendments to Titles 21 and 23 are designed to work together.

495
01:32:26.800 --> 01:32:36.259
Board Room: Title 21 changes cover the subdivision side. Procedures, completeness, the eligibility screens, and the subdivision-related development standards.

496
01:32:36.510 --> 01:32:44.390
Board Room: Title 23 changes cover the zoning side, including zoning district permissions and the objective development standards.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

497
01:32:46.850 --> 01:32:59.530
Board Room: This slide summarizes the new Chapter 2130, Small Lot Subdivisions, Middle Housing Infill Projects in Title 21, which is the main SB684 implementation section.

498
01:33:00.220 --> 01:33:08.860
Board Room: The first section sets the SB684 implementation purpose and establishes the two pathways… the two pathways.

499
01:33:09.210 --> 01:33:17.889
Board Room: Section 2130-020 definitions then defines a single project type, the middle housing infill project.

500
01:33:18.270 --> 01:33:23.549
Board Room: This definition is important because it links to the zoning code.

501
01:33:24.540 --> 01:33:38.660
Board Room: The section also codifies the parent parcel rule, which requires that zoning requirements, including inclusionary standards and other applicable city regulations, be reviewed at the original pre-subdivision parcel level.

502
01:33:39.520 --> 01:33:46.860
Board Room: The next three sections cover the application requirements and procedures, and the subdivision side requirements and standards.

503
01:33:47.170 --> 01:33:57.470
Board Room: The last two subsections cover the approval and recordation sequencing, and expiration enforcement and the standard savings and severability clause.

504
01:34:00.570 --> 01:34:03.620
Board Room: This slide explains the parent parser rule.

505
01:34:03.750 --> 01:34:10.359
Board Room: A parent parcel is a parcel that exists prior to a subdivision creating a middle housing infill project.

506
01:34:10.790 --> 01:34:23.580

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: In the image, we see two development envelopes on a 5,000 square foot original lot that conform to SB684 and R2 zoning standards for height and setbacks.

507
01:34:24.030 --> 01:34:31.830
Board Room: Both envelopes could be permitted as middle housing projects, even without any subdivision of ownership.

508
01:34:32.770 --> 01:34:52.069
Board Room: With SB684, the envelope on the left is then subdivided into 6 condominiums, and the envelope on the right is subdivided into 4 fee-simple lots. But in both cases, the zoning standards are applied at the parcel level before the subdivision happens.

509
01:34:54.780 --> 01:35:07.929
Board Room: This slide summarizes the zoning code changes. First, the ordinance permits middle housing infill projects where multifamily use is allowed across residential and commercial districts, including the MUR district.

510
01:35:08.460 --> 01:35:20.439
Board Room: Second, in the General Development Standards section, the ordinance codifies the parent parcel rule and establishes the objective middle housing infill project zoning Standard Set.

511
01:35:21.290 --> 01:35:31.340
Board Room: The parent parcel concept is also defined in Title 21 in Section 2130-020, so the subdivision and zoning codes are aligned.

512
01:35:31.480 --> 01:35:42.389
Board Room: And finally, Title 23 cross-references the Title 21 Middle Housing Infill project definition to ensure the subdivision and zoning review are consistent.

513
01:35:46.990 --> 01:35:54.760
Board Room: This slide summarizes the additional Title 21 changes that are primarily about state law compliance with the Subdivision Map Act.

514
01:35:55.240 --> 01:36:08.970
Board Room: These are mostly cleanup and alignment items. Improving code readability, resolving internal conflicts, clarifying approval authority, and streamlining processing for certain subdivision Map Act exemptions.

515

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:36:11.570 --> 01:36:21.479
Board Room: Finally, staff recommends that the City Council hold the public hearing and adopt the first reading of the ordinance to implement SB684 by establishing.

516
01:36:21.540 --> 01:36:33.769
Board Room: A ministerial SB684 compliant path for small lot subdivisions and related housing, and a local parcel map path for projects that do not qualify under SB684.

517
01:36:35.010 --> 01:36:39.679
Board Room: That concludes my presentation. Thank you, and I'm available for questions.

518
01:36:41.220 --> 01:36:56.349
Board Room: Thank you very much, Branca. You got applause, that's great, yes. So, thank you very much for your presentation, and so I want to ask, of course we've opened the public hearing, but ask if…

519
01:36:56.470 --> 01:36:59.120
Board Room: If there are any questions from my Council colleagues.

520
01:37:01.420 --> 01:37:05.750
Board Room: No questions. Okay, very good. Is there any public comment? Nope.

521
01:37:05.860 --> 01:37:23.079
Board Room: Yes. There is a… go ahead, Councilmember Blackaby. I was gonna go later, but since no one else went first, then I have to go first. Okay. Real quick questions on the staff report, bottom page 4 and also page 5, there's some adjustment or application of this in very high fire hazard severity zones,

522
01:37:23.200 --> 01:37:24.280
Board Room: and high…

523
01:37:24.410 --> 01:37:31.110
Board Room: fire hazard severity zones, where some of this may or may not apply differently. Could you just talk a little bit about that, just to make sure that's…

524
01:37:31.370 --> 01:37:44.279

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: clear? Yeah, so only the projects that are in very high fire severity zone are excluded from SB684, and that's the provision under the state law. Okay.

525
01:37:44.440 --> 01:37:51.100
Board Room: we just… and we saw there was some language in Government Code 66499 that you referenced here, where they also said.

526
01:37:51.210 --> 01:37:59.329
Board Room: or within a high or very high fire hazard zone, as indicated on maps adopted by the Department of Forestry. So I think our…

527
01:37:59.680 --> 01:38:12.549
Board Room: as our office was looking at this, is it just the very high, or is it high and very high where the exemption happens? It is only very high, and we clarified that with Chief Deputy Chief Arnold, so…

528
01:38:12.550 --> 01:38:21.999
Board Room: There are two different state codes, and the city of Berkeley, because it has local jurisdiction over creating the maps.

529
01:38:22.020 --> 01:38:40.459
Board Room: only applies one of them, and in that case, only very high, fire severity zone applies. Okay. So we got that information. Okay. And that's true whether you apply the government code 66499 standard or the SB684, because I think both of them refer to…

530
01:38:40.490 --> 01:38:46.960
Board Room: High or very high? So, our local path will not be applicable in the hills. Okay.

531
01:38:47.440 --> 01:38:48.260
Board Room: Thank you.

532
01:38:49.120 --> 01:38:51.430
Board Room: Thank you. Councilmember Kastarwani?

533
01:38:52.910 --> 01:39:08.110
Board Room: Yes, thank you very much. Thank you for the presentation. I'm really pleased that this is coming back to the Council after the referral that I had put forward last year, and I just want to remind folks that, this is a companion to the middle housing ordinance that…

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

534
01:39:08.180 --> 01:39:24.570
Board Room: This, this Council unanimously adopted, so this will give, folks an opportunity to own that small cottage, that middle housing will now make possible. So I did just want to clarify, because your example showed for each

535
01:39:24.840 --> 01:39:35.959
Board Room: Split lot, one unit, but is it the case that you can have more than one unit on each lot up to the maximum under state law, which is 10 units?

536
01:39:36.520 --> 01:39:45.379
Board Room: Yes, so you can have 10, dwelling units and 10 ownership units. So, ownership units can be…

537
01:39:45.710 --> 01:39:51.099
Board Room: Regular parcels, they're called fee-simple parcels, or condominiums.

538
01:39:51.190 --> 01:40:05.160
Board Room: So, any combination of the number of units up to 10, and ownership units up to 10 is allowable. So you can have a parcel map that, let's say, splits the lot into two fee simple lots, but each lot

539
01:40:05.200 --> 01:40:12.539
Board Room: Can have 2 fourplexes, so that would be 8 units, but only 2 ownership units.

540
01:40:12.570 --> 01:40:26.129
Board Room: Or then those four policies can be condominiums. So all of these combinations are allowed, as long as the maximum number of units is 10, and the maximum number of ownership units

541
01:40:26.170 --> 01:40:32.800
Board Room: is then. So, so just to clarify, so, so are you saying one ownership unit per lot?

542
01:40:33.240 --> 01:40:45.279
Board Room: Or no? So, lot is an ownership unit. Okay. It can be either a condominium or a fee-simple lot. They are the same under the subdivision Map Act. Okay. Okay.

543

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:40:45.720 --> 01:40:49.459
Board Room: I think that is all I have.

544
01:40:49.560 --> 01:40:50.550
Board Room: Thank you.

545
01:40:51.210 --> 01:40:54.540
Board Room: Thank you. Is there any public comment on this item?

546
01:40:56.640 --> 01:41:03.849
Board Room: Oh, you have a question. Okay, sorry. Sometimes our parliamentarian system isn't working. Go ahead, Councilmember Traika.

547
01:41:07.780 --> 01:41:11.989
Board Room: Parliamentarian wasn't following procedure.

548
01:41:12.880 --> 01:41:17.120
Board Room: I just wanted to thank you so much for the presentation. I just wanted to…

549
01:41:19.180 --> 01:41:24.730
Board Room: clarify two things. The local parcel map path

550
01:41:25.270 --> 01:41:31.400
Board Room: Would that be non-ministerial? So that would be, like, the second option?

551
01:41:31.880 --> 01:41:48.669
Board Room: Yes, the second option, cannot be ministerial, because, SB684 is, carved out, in… within Subdivision Map Act, to actually allow ministerial subdivision.

552
01:41:48.760 --> 01:41:52.439
Board Room: Other than that, subdivisions are…

553
01:41:52.950 --> 01:42:09.149
Board Room: kind of discretionary, sometimes administrative. So, parcel maps are mostly administrative, so the decision is made within the department. And yeah, so we couldn't create a ministerial process

554
01:42:09.350 --> 01:42:21.900

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: because of the preclusion of Subdivision Map Act, but, we did whatever we could to make it streamlined and as administrative as possible.

555
01:42:22.260 --> 01:42:34.680
Board Room: Okay, and then, I… When we approved middle housing, I think there was one… maybe you…

556
01:42:35.010 --> 01:42:46.399
Board Room: I think just one, zoning district where there was a minimum density standard, for a particular lot.

557
01:42:46.800 --> 01:42:55.600
Board Room: And I was wondering if, this… Recommendation.

558
01:42:55.930 --> 01:43:05.139
Board Room: has… If there's any bearing between those two, or are these apples and oranges?

559
01:43:06.150 --> 01:43:16.229
Board Room: We do require minimum density per zoning if it is stated in the zoning development standards for a particular district.

560
01:43:16.350 --> 01:43:30.310
Board Room: And across middle housing, I think the lowest is 20, right? And then, as the density increases, they're a little higher, up to 40, I think.

561
01:43:30.440 --> 01:43:40.100
Board Room: But for, middle housing infill projects, the project proponent has to propose at least one unit.

562
01:43:40.230 --> 01:43:46.580
Board Room: So, in most cases, that's pretty much enough to satisfy the minimum density.

563
01:43:46.710 --> 01:43:54.230
Board Room: Especially if there's already existing units, because they are counted towards the density as well.

564
01:43:56.950 --> 01:43:57.780
Board Room: Okay.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

565
01:43:58.180 --> 01:43:59.310
Board Room: Thank you.

566
01:43:59.630 --> 01:44:02.899
Board Room: Thank you. Okay, public comment on this item?

567
01:44:03.410 --> 01:44:12.170
Board Room: We are on item number 20, Amendments to Title 21, Subdivisions Ordinance, and Title 23, Zoning Ordinance, to implement Senate Bill SB684.

568
01:44:16.110 --> 01:44:18.110
Board Room: Good evening, council members.

569
01:44:18.250 --> 01:44:37.790
Board Room: My name is Brianna Morales, and I am with the Housing Action Coalition. We are a member-supported, organization that advocates for housing at all levels of income, and HACC was proud to sponsor SB684 because it creates a clear, practical pathway to deliver small-scale ownership housing.

570
01:44:37.790 --> 01:44:42.460
Board Room: With the kind of density that already fits into existing neighborhoods.

571
01:44:42.710 --> 01:44:46.370
Board Room: And gives working families a real shot at home ownership.

572
01:44:47.000 --> 01:44:49.409
Board Room: The next step is really about implementation.

573
01:44:49.510 --> 01:45:05.999
Board Room: Taking the state law and making it usable here in Berkeley. By establishing a ministerial objective approval process for small lot subdivisions and creating a complementary local path for projects that meet, requirements, the city can provide clarity and predictability.

574
01:45:06.150 --> 01:45:24.469
Board Room: And that predictability is not a small thing. Our members who build the housing, tell us all the time how much they struggle, especially when they're a small infill project. Because the process was

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

uncertain, there was delays, discretionary, and over-complex, pathways that they had to take.

575
01:45:24.740 --> 01:45:32.560
Board Room: That uncertainty simply… Causes risk, that they cannot afford, and those builders walk away.

576
01:45:32.800 --> 01:45:39.089
Board Room: When that happens, the kinds of homes that can be attainable to middle-income households never get built.

577
01:45:39.650 --> 01:45:41.370
Board Room: And so, for Hack.

578
01:45:41.570 --> 01:46:00.880
Board Room: successful implementation means paving the way to allow builders to build the homes that Berkeley desperately needs in a housing crisis. So we urge you to pass legislation that allows projects to move forward, demonstrating not only that Berkeley, supports housing in principle, but also through practice. Thank you very much.

579
01:46:01.200 --> 01:46:02.420
Board Room: Thank you.

580
01:46:02.850 --> 01:46:08.169
Board Room: Thanks for being here. Is there anyone online who would like to make public comment on this item?

581
01:46:13.400 --> 01:46:14.949
Board Room: Three hands raised.

582
01:46:16.100 --> 01:46:24.610
Board Room: First is… Quio? Cleo, you should be able to… Hold on.

583
01:46:28.080 --> 01:46:30.080
Board Room: Clearly, you should be able to unmute.

584
01:46:30.400 --> 01:46:31.260
Board Room: There you go.

585
01:46:31.720 --> 01:46:47.029

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Cleo Masliah: Thank you, hi. So first off, SB684 was actually replaced by Bill SB1123 on July 1st, 2025, so it's not clear to me why we're adding an obsolete bill to the Berkeley Code when we should be adding the current California bill instead.

586
01:46:47.390 --> 01:47:03.090
Cleo Masliah: Secondly, the proposed local alternative to SB684 doesn't actually offer an equivalent to the California bill. This means that the de facto ability to parcel split in smaller residential lots has been inadvertently removed completely by the new blue housing zoning legislation.

587
01:47:03.250 --> 01:47:21.799
Cleo Masliah: I would like to see today the City Council adopt the part of the recommendation that does implement SB684, but to hold off on implementing anything for an alternative pathway for the small housing lots that have been excluded, because it is my belief that we can find a better option

588
01:47:21.800 --> 01:47:25.300
Cleo Masliah: That would actually, allow those lots to

589
01:47:25.300 --> 01:47:30.210
Cleo Masliah: Benefit from a streamlined ministerial approval in the future.

590
01:47:30.580 --> 01:47:31.629
Cleo Masliah: Thank you.

591
01:47:35.080 --> 01:47:36.180
Board Room: Thank you.

592
01:47:37.260 --> 01:47:39.790
Board Room: Next is, Debbie Sanders.

593
01:47:39.900 --> 01:47:41.510
Board Room: Debbie Sanderson?

594
01:47:44.360 --> 01:47:50.520
debbie sanderson: Hi, thank you. This proposed ordinance does one really good thing.

595

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:47:50.650 --> 01:48:00.120
debbie sanderson: And that's in Section 7 of the ordinance. It updates Chapter 21 to be consistent with SB684.

596
01:48:00.310 --> 01:48:02.730
debbie sanderson: So, I'm clear that we should adopt

597
01:48:03.050 --> 01:48:05.540
debbie sanderson: Section 7 of the proposed ordinance.

598
01:48:06.110 --> 01:48:19.590
debbie sanderson: But the first 6 sections modify our parcel map process, and I don't think any of those amendments are really substantive. They don't address any of the particular problems we face now.

599
01:48:19.590 --> 01:48:30.990
debbie sanderson: when we want to subdivide a parcel. Then the last four sections, I thought were to update our zoning ordinance to be compliant with SB684.

600
01:48:31.330 --> 01:48:33.600
debbie sanderson: But I don't think they do that.

601
01:48:33.900 --> 01:48:46.219
debbie sanderson: In particular, Section 3, creates new zoning standards for MHIPs, and some of those standards conflict with SB684.

602
01:48:46.390 --> 01:48:55.790
debbie sanderson: So… If we want to, Help owners of small lots that don't meet the

603
01:48:55.980 --> 01:49:10.689
debbie sanderson: SB684 standards. If we want to make it easier for them to subdivide, then I think we need to go back to the drawing board, because I don't see anything in this ordinance that makes that issue easier.

604
01:49:10.920 --> 01:49:17.510
debbie sanderson: So, let's adopt Section 7, and then we'll be in compliance with 684.

605
01:49:17.720 --> 01:49:21.850

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

debbie sanderson: And go back to the drawing board for the other two parts.

606
01:49:22.010 --> 01:49:22.980
debbie sanderson: Thank you.

607
01:49:24.030 --> 01:49:24.900
Board Room: Thank you.

608
01:49:25.790 --> 01:49:30.060
Board Room: That's it. There was just… Two speakers.

609
01:49:36.900 --> 01:49:56.329
Board Room: That's it. There was just two speakers. Okay. Thank you very much. If you could address those… there are a couple of comments online that I think I'd like you all to address, and then I know you have comments as well, or questions as well. Sure, I'll take a stab at it. I'm not totally sure one of the commenters referenced to the problems that…

610
01:49:56.550 --> 01:50:04.009
Board Room: people are having subdividing, and I'm not sure what specific problems are being referred to, so it's hard for me to respond to that.

611
01:50:04.260 --> 01:50:15.429
Board Room: I want to, you know, the… a larger issue that I am aware of that's been raised, that we're trying to address through this process, is that when City Council adopted middle housing standards, that

612
01:50:15.690 --> 01:50:18.510
Board Room: Set higher maximum densities.

613
01:50:18.830 --> 01:50:22.110
Board Room: It made it more difficult for…

614
01:50:23.970 --> 01:50:30.350
Board Room: projects that wanted to take advantage of SB684 to meet the requirements of

615
01:50:30.520 --> 01:50:43.129
Board Room: of hitting the minimum of 60… of two-thirds, of the maximum density, in order to qualify for SB684. Say if they only wanted to build to…

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

616
01:50:43.150 --> 01:50:51.420
Board Room: or 3 units, and they'd be… in order to qualify, they'd be required to build 4 or 5 units. So that's…

617
01:50:52.180 --> 01:50:58.219
Board Room: No, I'm not sure how common that problem is, but it's definitely…

618
01:50:58.490 --> 01:51:02.800
Board Room: a possible outcome. And so, that's…

619
01:51:02.860 --> 01:51:20.040
Board Room: The purpose of our local path that Branca described, our local parcel map path, is to create a more streamlined process for projects that do meet our minimum density requirements, but don't meet the requirements to qualify for SBE 684.

620
01:51:20.110 --> 01:51:26.080
Board Room: As Ranca noted, in, I think, the Q&A,

621
01:51:26.200 --> 01:51:35.570
Board Room: That doesn't quite match the ministerial process enabled under SB684, because,

622
01:51:36.500 --> 01:51:41.429
Board Room: our understanding of the Subdivision Map Act is that we are precluded from doing that.

623
01:51:41.720 --> 01:51:45.110
Board Room: They're precluded from offering a ministerial pathway.

624
01:51:45.430 --> 01:51:55.720
Board Room: so, what we've presented to you is as streamlined as a pathway as we could come up with.

625
01:51:55.830 --> 01:52:03.639
Board Room: And, and we think, yeah, that's what we're recommending to you this evening.

626
01:52:05.030 --> 01:52:13.250

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: City Council could potentially consider and explore Reconsideration of the maximum densities.

627
01:52:13.570 --> 01:52:15.560
Board Room: Adopted under middle housing.

628
01:52:15.890 --> 01:52:25.079
Board Room: as a… a way to restore the accessibility of XSB684.

629
01:52:25.220 --> 01:52:33.580
Board Room: if… But that's not really… that wasn't the assignment before us, for this project.

630
01:52:33.760 --> 01:52:45.100
Board Room: So, we, you know, we certainly looked at this really closely, in close collaboration with the City Attorney's Office as well, and, we are confident in our recommendation this evening.

631
01:52:45.300 --> 01:52:48.319
Board Room: Thank you. Thank you very much. Vice Mayor Lunapara.

632
01:52:48.740 --> 01:52:57.699
Board Room: Thank you. I just have a quick follow-up to that. If Council had adopted no density maximums, then how would 684 apply?

633
01:52:58.220 --> 01:53:14.959
Board Room: So, if there is no stated maximum density, then the density under SB684 state would be the default metropolitan area density, which is 30 dwelling units per acre for

634
01:53:15.050 --> 01:53:18.469
Board Room: Alameda County and Berkeley. And,

635
01:53:18.620 --> 01:53:31.630
Board Room: I think it's, 66% of that, which is 20 dwelling units per acre, and that is the minimum density in the lowest middle housing, zoning district.

636
01:53:32.410 --> 01:53:33.160
Board Room: Thanks.

637

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:53:34.660 --> 01:53:36.819
Board Room: Okay, thank you very much.

638
01:53:36.980 --> 01:53:43.320
Board Room: Council deliberations are… actually, let's close the public hearing. Is there a motion to close the public hearing?

639
01:53:43.470 --> 01:53:45.019
Board Room: So moved. Second.

640
01:53:45.690 --> 01:53:48.780
Board Room: Okay, is there any opposition to close the public hearing?

641
01:53:48.900 --> 01:53:49.630
Board Room: Okay?

642
01:53:50.270 --> 01:53:51.610
Board Room: Public hearing is closed.

643
01:53:51.980 --> 01:53:54.279
Board Room: Alright, Council Deliberations.

644
01:53:55.610 --> 01:54:04.280
Board Room: Councilmember Kesserwani. Thank you very much, Madam Mayor. Thank you again to staff for the ordinance. So, I just,

645
01:54:04.720 --> 01:54:10.250
Board Room: For the purposes of moving this along, I, I had two…

646
01:54:10.420 --> 01:54:24.360
Board Room: considerations that I wanted to suggest to my colleagues, very minor changes, to two numbers. So, if you have the packet open, this 96-page packet that includes the ordinance.

647
01:54:24.490 --> 01:54:27.140
Board Room: On page 15,

648
01:54:27.880 --> 01:54:42.970
Board Room: the bottom of 15 and the top of 16, there is language around the minimum lot size for the lot split. So, in the multifamily zones, it's 600 square feet, so that's essentially the… all of the flats.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

649
01:54:43.140 --> 01:54:58.650
Board Room: Where we… the middle housing ordinance now applies. If you want to do a lot split, it has to be at least 600 square feet for you to get a little cottage on it. And then in the HOZ, the Hillside Overlay Zone, that's the only zone that remains a single-family zone.

650
01:54:58.690 --> 01:55:14.460
Board Room: State law says it only applies to vacant single-family parcels, so there's gonna be very few. Here we said 1,200 square feet, is the minimum lot size, and,

651
01:55:14.580 --> 01:55:25.440
Board Room: the question I asked earlier was relevant because that is not a restriction on the number of units that can be built on that vacant single-family parcel. You can still get up to 10,

652
01:55:25.460 --> 01:55:39.809
Board Room: It's just that the opportunities for the fee-simple ownership will be restricted, because it's a higher, minimum lot size of 1200. So, what I was going to suggest, just to maintain flexibility for the ownership.

653
01:55:39.830 --> 01:55:54.060
Board Room: Again, I… there's… there's maybe very, very few vacant single-family parcels in the hills, but to the extent that there might be a couple, I was gonna suggest we just equalize it, so just say 600 square feet for both.

654
01:55:54.090 --> 01:55:56.980
Board Room: So we have the same rules citywide, and…

655
01:55:57.170 --> 01:56:03.259
Board Room: It doesn't increase the number of units, it just allows the fee-simple ownership to be…

656
01:56:03.420 --> 01:56:20.149
Board Room: easier, if somebody wanted to do that. So that was one suggestion. I'm interested in my colleagues' input. Apologies. Is it possible to put this on the screen so that we can… Yeah, oh, oh, you want to see… Yeah, it might just be helpful for transparency so folks know. Oh, okay,

657

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:56:20.880 --> 01:56:27.889
Board Room: It's gonna take me a moment to share… Maybe staff can help us while you're going through. Maybe y'all can share the screen, because I'm just looking at the court events.

658
01:56:28.020 --> 01:56:33.670
Board Room: So that was one thing, and then on page 20 of 96 pages, which I think we're gonna show…

659
01:56:34.410 --> 01:56:39.460
Board Room: There is a requirement for open space, which is really important.

660
01:56:39.920 --> 01:56:47.729
Board Room: It says a minimum of 200 square feet per unit. Our middle housing ordinance, if you will recall.

661
01:56:47.730 --> 01:57:01.999
Board Room: It said 150 square feet per 1,000 square feet of residential square footage, which, in my mind, is roughly a unit. So, just for the purposes of keeping things aligned with the middle housing ordinance.

662
01:57:02.050 --> 01:57:20.300
Board Room: and just slightly reducing this requirement, I was going to suggest we change 200 to 150. All it does, you know, if you think about, you know, what are the ramifications of that, it just makes it a little easier to comply. It's my feeling that 150 square feet is,

663
01:57:20.300 --> 01:57:28.710
Board Room: a good amount of open space per unit, and that's what we did in the middle housing ordinance. So those are the two numeric suggestions

664
01:57:28.860 --> 01:57:35.549
Board Room: I can make a motion to approve the ordinance as proposed by staff.

665
01:57:35.750 --> 01:57:53.710
Board Room: With those two numeric changes, the minimum lot size in the… for the vacant single-family homes will be 600 square feet, and the minimum square feet of usable open space will change from 200 to 150. That's the motion. And I'll second that. Okay, thank you.

666
01:57:55.960 --> 01:57:56.790

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: Okay.

667
01:57:56.920 --> 01:58:07.599
Board Room: Are you able to pull that up? Yeah, if not, no, I understand. It can take a while to pull up that document. Okay, are there other comments then, Councilmember, Vice Mayor Lunopara, please?

668
01:58:07.730 --> 01:58:15.589
Board Room: Thank you. I'm wondering, if staff has any thoughts on… Those amendments proposed.

669
01:58:15.960 --> 01:58:22.870
Board Room: Or, specifically, I'm curious about the, the reason for the state law having a different

670
01:58:23.960 --> 01:58:27.679
Board Room: Size for single-family home versus multi-unit?

671
01:58:28.780 --> 01:58:41.959
Board Room: I think that's ported from SB9, which is a subdivision ministerial process for single-family zoned parcels, referring to 1,200 square feet.

672
01:58:42.100 --> 01:58:43.300
Board Room: Lot size.

673
01:58:43.980 --> 01:58:45.970
Board Room: Okay. I don't think there's… there's…

674
01:58:46.280 --> 01:58:51.330
Board Room: more to that than, you know, just being consistent with Espina.

675
01:58:52.030 --> 01:58:56.460
Board Room: That's helpful. Thank you. And, do you have any other thoughts on those amendments?

676
01:58:56.660 --> 01:59:13.240
Board Room: No, I mean, as Councilmember Cassarani, already stated, it doesn't increase the number of units, so it doesn't really increase density. It does increase the number of ownership… fee simple ownership units, potentially.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

677
01:59:13.560 --> 01:59:26.780
Board Room: I think that's, consistent with the policy intent, where, you know, we are trying to find options to, for increasing affordable, naturally affordable home ownership options.

678
01:59:27.310 --> 01:59:28.030
Board Room: Thanks.

679
01:59:28.910 --> 01:59:31.369
Board Room: Thank you. Other comments from my Council colleagues?

680
01:59:33.540 --> 01:59:38.909
Board Room: Okay, well, we have a motion on the floor, so I think we should take roll, please.

681
01:59:40.440 --> 01:59:47.760
Board Room: Do you have a comment? Yeah, go ahead. I want to express a little discomfort. I think I was trying to form a question still.

682
01:59:48.430 --> 01:59:50.340
Board Room: I guess, you know…

683
01:59:51.410 --> 02:00:02.249
Board Room: since this is… this change is really only gonna affect Hillside Overlay, which my district has a lot of, it's only gonna affect… we're just saying that we can make the lot smaller in…

684
02:00:02.460 --> 02:00:13.879
Board Room: in vacant lots. And, Councilmember, it's only for a vacant… Right, I understand. Yeah. Yeah. And I understand we're not, like, this isn't, like, a runaround density, or… I get that, but I guess…

685
02:00:14.240 --> 02:00:22.830
Board Room: I'm just… I'm a little uncomfortable with this… not getting to vet this beforehand. That's my discomfort. So I'm not sure how to…

686
02:00:23.070 --> 02:00:24.859
Board Room: Maybe I'll just have that be.

687
02:00:25.140 --> 02:00:32.040

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: the reason for my vote. I don't even know what question to ask, which is not a comfortable place for me. That's my concern.

688
02:00:32.180 --> 02:00:38.999
Board Room: it's probably… it seems fine. I can't think of a reason against it right now, but I just… I want more time to think about it, if that makes sense.

689
02:00:39.460 --> 02:00:42.370
Board Room: Okay, Councilmember Treykop?

690
02:00:46.190 --> 02:00:47.620
Board Room: Yeah.

691
02:00:48.460 --> 02:00:59.749
Board Room: So… Sorry to be dense, no pun intended. I… so, this…

692
02:01:00.600 --> 02:01:05.670
Board Room: could potentially apply to R1H now.

693
02:01:05.800 --> 02:01:11.270
Board Room: As long as it's not a very high fire severity zone, correct?

694
02:01:11.570 --> 02:01:28.769
Board Room: Is that the issue at hand that's leading to… Councilmember Turner, this is not a change. The ordinance always applied to the hillside overlay zone. Okay. Yeah, it's just… all we did was change 1,200 to 600 square feet

695
02:01:28.770 --> 02:01:32.959
Board Room: in the Hillside Overlay Zone, but it was always applying to the Hillside Overlay Zone.

696
02:01:32.960 --> 02:01:38.290
Board Room: Okay, thanks for… Thanks for helping me remember.

697
02:01:38.400 --> 02:01:52.069
Board Room: what we voted on before. Thanks, and just, if it helps at all with your discomfort, Councilmember, we're trying to increase the ability of people to have ownership, and so that's the kind of piece here, right? So…

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

698
02:01:52.070 --> 02:02:03.140
Board Room: Hopefully that helps a little bit. Oh, Councilmember Blackaby… Oh, if you wanted to follow up, and then… Oh, I just wanted to say, it does seem reasonable on its face. I just…

699
02:02:03.490 --> 02:02:21.049
Board Room: it's kind of sudden, I like to think things through, that's all. Sure. Just my question to Councilmember Kaswani is, so, again, help us understand the… so, lot sizes on vacant parcels would be reduced, but density doesn't change. Again, just help me walk up through a little bit. It's… and I actually,

700
02:02:21.280 --> 02:02:36.159
Board Room: discovered this in talking to, Director Klein. Yeah, so… so… and, you know, when we're talking about middle of housing ordinance, you know, we're thinking about, like, the edge extreme case, so… so that's what I was thinking about here. So I think this is highly unlikely, but there's a vacant parcel in the hills.

701
02:02:36.240 --> 02:02:44.019
Board Room: Let's say, maybe for this example, it's better to think of, like, a smaller… something on the smaller side. Maybe it's only 3,000 square feet,

702
02:02:44.180 --> 02:03:02.030
Board Room: this change would matter because it's saying, well, your minimum lot for your split could be as little as 600 square feet. Okay. So 1,200… so, so you could still… if you wanted to do 5 units, or 10 units, even, on that 3,000 square foot parcel.

703
02:03:02.110 --> 02:03:12.559
Board Room: that's still allowable. Nothing we did here changes that. What we are trying to do here is simply say, well, if you want to do,

704
02:03:12.720 --> 02:03:14.160
Board Room: for…

705
02:03:14.350 --> 02:03:29.279
Board Room: ownership units. It'll now be a little easier, because your lot size can be smaller. 1200 is rather large, relative to what we're doing for the rest of the city, which is the 600. So, the idea is just,

706
02:03:29.570 --> 02:03:44.690

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: keep it the same for the whole city. And the controlling, kind of, legislation around the density in the hillside overlay is still what we did with middle housing. So the… so it's… it's not, it's… do you… staff, do you want to explain…

707
02:03:44.840 --> 02:04:00.040
Board Room: Because… because remember, Hillside Overlay… this is a little confusing, because Hillside Overlay doesn't have middle housing density, it just has R1. Right. So it defaults to what the state law says, which is two-thirds of the R1 density

708
02:04:00.890 --> 02:04:25.040
Board Room: Which, do you want to explain what that would be? It is actually two-thirds of the state default. Oh, oh, it's 30 dwelling units per acre, because it doesn't make sense. Two-thirds of one unit… It's two-thirds of a unit. So it's… it's two-thirds of 30 dwelling units per acre, which is what the state law says. So you'd have to do the math, 30 dwelling units per acre, what is that, like, 4 units?

709
02:04:25.040 --> 02:04:27.649
Board Room: On a 5,000 square foot lot.

710
02:04:27.940 --> 02:04:46.949
Board Room: So you can do 2 thirds of 4 units? 2, yeah, that's 2 units. But that's the minimum required. I think you're conflating… I think you're asking about the maximum, right? Yeah, maximum is 10. So the maximum is 10, and that's established by SB684. That's established by 6… that's…

711
02:04:47.040 --> 02:04:48.819
Board Room: That's state law. Right.

712
02:04:49.050 --> 02:04:59.549
Board Room: So whether we implement any ordinance, or not, that would still be allowable, just under the provisions of the state law.

713
02:05:00.280 --> 02:05:08.189
Board Room: This comes back in the earlier question, was, was, but then, how does the very high fire hazards severity zone piece come into play?

714
02:05:09.130 --> 02:05:21.779
Board Room: the lots that are within that zone are just automatically disqualified. Right, so then thinking all the way through, again, I'm

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

just thinking of the different strips. So if you're in the very high fire hazard severity zone.

715
02:05:22.210 --> 02:05:26.010
Board Room: Bless you. Yeah, you can't subdivide, right?

716
02:05:26.140 --> 02:05:31.710
Board Room: If you are in the hillside overlay zone, you are not covered by middle housing.

717
02:05:32.160 --> 02:05:34.879
Board Room: But you are covered now by…

718
02:05:35.640 --> 02:05:43.320
Board Room: this. Yes. State policy. If it's a… Regardless of this legislation, if we are… If it's a vacant lot.

719
02:05:43.730 --> 02:05:50.039
Board Room: Correct. Only for vacant lots. If it is a lot with a current single-family home, or duplex, or something on it.

720
02:05:50.230 --> 02:05:51.390
Board Room: This does not…

721
02:05:54.880 --> 02:06:06.730
Board Room: SB9. Also, I just want to note, I'm sorry to complicate things, but we're… I mean, this is true of R1H. There are multi-unit… Yeah, R1H, I'm sorry. Yeah. You're right, right.

722
02:06:07.100 --> 02:06:12.039
Board Room: So, keep that going, so keep the through line, other than that piece, but, so if you're R1H…

723
02:06:12.200 --> 02:06:14.439
Board Room: In the high fire hazard severity zone.

724
02:06:14.580 --> 02:06:19.580
Board Room: The two-third… the 20, the 20 dwelling unit per acre.

725
02:06:20.060 --> 02:06:31.330

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: density applies? No, that's not a maximum. That's a minimum in order to comply… in order to be eligible for SB684. Okay. The maximum number of units is 10. Okay.

726
02:06:31.780 --> 02:06:40.309
Board Room: So that's true, okay, but again, just on vacant lots, vacant R1H lots. Yeah. Correct. And I would also, I'd like to add that,

727
02:06:40.440 --> 02:06:47.469
Board Room: So, when, there's a map for subdividing the lot into fee simple lots.

728
02:06:47.500 --> 02:07:03.450
Board Room: There are Subdivision Map Act, requirements that still apply, so the fire code, the access easements, all kinds of things need to be complied with in order to subdivide into fee simple.

729
02:07:03.450 --> 02:07:09.899
Board Room: So, reducing the, minimum, lot size

730
02:07:10.150 --> 02:07:23.050
Board Room: It's not automatically making it so much easier, because there are all of these other requirements that might even be harder to be achievable with a smaller lot size.

731
02:07:23.860 --> 02:07:29.899
Board Room: So the, yeah, so the lot size isn't the rate-limiting factor in that. No. In that part.

732
02:07:31.240 --> 02:07:32.150
Board Room: Okay, thank you.

733
02:07:32.820 --> 02:07:35.159
Board Room: Thank you. Okay, Councilmember O'Keefe.

734
02:07:35.810 --> 02:07:40.329
Board Room: Yeah, this is kind of random, but I actually just sort of realized I have a,

735
02:07:40.490 --> 02:07:44.620
Board Room: sort of… I don't think I have a legal conflict here, but there's sort of a…

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

736
02:07:46.130 --> 02:08:00.119
Board Room: I think I'm gonna abstain. I think I have a little bit of a self-interest in this that makes me uncomfortable. I don't think I need to recuse. I can go check with Freema. I'm almost positive that's not a requirement, I just… it's like a personal comfort thing, so I'm just saying I'm gonna abstain for that reason.

737
02:08:00.630 --> 02:08:07.010
Board Room: Okay. So, just so that we all know, and I can talk about… if Rima says I have to say more, I will, but I don't think I do.

738
02:08:07.320 --> 02:08:10.559
Board Room: I think you two should have a conversation.

739
02:08:12.080 --> 02:08:14.640
Board Room: Anyway. Have fun.

740
02:08:37.270 --> 02:08:44.309
Board Room: Well, this is highly unusual, so, please give us a moment while we, wait for them to return.

741
02:09:19.560 --> 02:09:21.449
Board Room: Okay, so we're gonna take the roll.

742
02:09:24.560 --> 02:09:27.389
Board Room: A second from Councilmember Humbert.

743
02:09:32.360 --> 02:09:42.209
Board Room: Okay, so, it's the ordinance as proposed by staff, including the Amendments in the revised materials.

744
02:09:43.180 --> 02:09:48.750
Board Room: And then… the… Minimum lot size…

745
02:09:49.390 --> 02:09:53.080
Board Room: For multi-family lots at 600 square foot minimum.

746
02:09:53.220 --> 02:10:04.229
Board Room: and then useful open space at 150 square foot minimum. Yes, Mr. City Clerk, it was the… it's the vacant single-family zoned

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

747
02:10:04.360 --> 02:10:11.719
Board Room: parent parcel that ships from 1,200 to 600? You said multifamily. Oh, okay. So, so would that change, that's the motion.

748
02:10:11.930 --> 02:10:13.230
Board Room: Thank you.

749
02:10:14.000 --> 02:10:19.010
Board Room: And could I clarify that includes the… reflects the sub-3 materials?

750
02:10:19.340 --> 02:10:25.460
Board Room: Yes, and the sub-3 materials. Yes, that's what I… Thank you.

751
02:10:26.430 --> 02:10:30.220
Board Room: Okay, on the motion, Councilmember Kessarwani. Yes.

752
02:10:30.360 --> 02:10:36.370
Board Room: Kaplan? Yes. Bartlett? Yes. Trega? Aye. O'Keefe? Abstain.

753
02:10:36.600 --> 02:10:46.650
Board Room: Blackaby? Yes. Unapara? Yes. Humbert? Yes. And Mary Ishii? Yes. Okay, motion carries. Motion? Motion passes. Thank you all so much.

754
02:10:46.730 --> 02:11:03.249
Board Room: Thank you for those of you who came to watch or give public comment. I'm gonna move us on to the final item for this evening, which is item number 21, the City of Berkeley's 2026 State and Federal Legislative Platform. As was mentioned at a previous meeting, I…

755
02:11:03.250 --> 02:11:15.280
Board Room: Was able to go to Washington, D.C, for the U.S. Conference of Mayors, as well as the Mayor's Innovation Project, and also had an opportunity to do some lobbying on behalf of the city with our lobbyist.

756
02:11:15.280 --> 02:11:21.520
Board Room: And so we are very lucky to have Niccolo De Luca here with us to answer any questions that we might have.

757
02:11:21.540 --> 02:11:38.349

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: So typically every year, the mayor works with city staff and our state and federal advocates to set a legislative platform that guides our advocacy work. As in previous years, our priority areas are related to homelessness, housing, economic development, infrastructure, public safety, sustainability, and the environment, and health.

758
02:11:38.520 --> 02:11:47.319
Board Room: It takes a long time for legislation to come to fruition, as you all know. Therefore, it's logical for many things to stay on the list year over year.

759
02:11:47.320 --> 02:12:07.000
Board Room: And… so that is to say that many of the things are similar from previous years, because we know that these are going to continue to be our priorities. I know also that Vice Mayor Lenopara has some things that she would like to add as a friendly amendment, and I am happy to accept them, so if you could also, pull up your additions now to share with folks.

760
02:12:07.010 --> 02:12:12.199
Board Room: I think, I'll just need whoever's sharing right now to stop sharing.

761
02:12:12.730 --> 02:12:19.360
Board Room: Is that city staff?

762
02:12:20.490 --> 02:12:23.780
Board Room: Oh. Okay, very good.

763
02:12:24.500 --> 02:12:25.970
Board Room: Thank you very much.

764
02:12:26.600 --> 02:12:29.839
Board Room: And… Yeah, go ahead.

765
02:12:29.950 --> 02:12:42.420
Board Room: Okay, I'm just gonna read them out loud. These are some friendly amendments, additions. Support legislative and funding efforts to assist… Sorry, could you make it a little bigger and close that side so that folks can read it a little better, please?

766
02:12:43.340 --> 02:12:44.020
Board Room: Oof.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

767
02:12:45.850 --> 02:12:48.720
Board Room: Thank you. Is that better? Okay.

768
02:12:48.940 --> 02:12:54.879
Board Room: Support legislative and funding efforts to assist students experiencing homelessness and housing insecurity.

769
02:12:54.880 --> 02:13:09.480
Board Room: Support legislation allowing municipalities to regulate autonomous vehicles locally. Support legislative efforts to create a not-for-profit utility service to replace investor-owned utility programs. Support funding for increased lighting on streets and sidewalks.

770
02:13:09.700 --> 02:13:21.959
Board Room: Support funding for seismic retrofits for affordable housing providers, including nonprofit housing cooperatives and community land trusts. Support funding for public bicycle storage. Support funding for urban heat island mitigation.

771
02:13:22.120 --> 02:13:35.690
Board Room: And then, a slight, addition to the support legislative efforts to enhance greater access to hospitals and healthcare, including Medicare for All at the federal level and CalCare at the state level.

772
02:13:35.840 --> 02:13:55.540
Board Room: Support legislative and funding efforts to expand the availability of emergency naloxone, fentanyl strips, test strips, beverage test strips, needle exchange programs, and other harm reduction tools. Support efforts to include information about emergency naloxone administration in the Responsible Beverage Service Training Program, Licensee Education on Alcohol and Drugs.

773
02:13:55.710 --> 02:14:08.069
Board Room: and program and or other appropriate certification programs. Support restarting and expanding the CalFresh Fruit and Vegetable Supplemental Benefits Program, and support legislative efforts to more easily enable the creation of the East Bay Public Bank.

774
02:14:09.570 --> 02:14:16.279
Board Room: Thank you. Thank you very much, and, I know that also, Councilmember Humbert has something he'd like to add as well.

775

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:14:18.520 --> 02:14:29.140
Board Room: Yes, thank you, thank you, Madam Mayor, and I don't have it, in written form to put up on the screen. I mean, I have it on, in my notes. I want to thank,

776
02:14:29.320 --> 02:14:37.959
Board Room: you, Mayor Ishii, and the City's lobbyists for, your work on this list of legislative priorities.

777
02:14:38.560 --> 02:14:48.010
Board Room: there's one thing, I just have one thing, and I think it's really important for the future of ownership housing, and that's condominium construction defect liability reform.

778
02:14:48.060 --> 02:15:02.509
Board Room: My understanding is that, Assemblymember Wicks and possibly Senator Ergeen may be taking this on. I'm confident that Assemblymember Wicks, is, or at least she said she's going to. It's going to be a political,

779
02:15:02.510 --> 02:15:09.990
Board Room: fight, I think. So I think that adding this to our list would align with some planned efforts, and I'd like to move that we add

780
02:15:10.000 --> 02:15:13.830
Board Room: This to the following list, and in the language, it's just a very short.

781
02:15:13.940 --> 02:15:15.920
Board Room: Blurb.

782
02:15:16.360 --> 02:15:29.750
Board Room: Reform condominium construction and design defect liability to reduce costs, improve feasibility, and expand ownership housing options.

783
02:15:30.320 --> 02:15:32.309
Board Room: So I'd like to move to add that.

784
02:15:33.440 --> 02:15:49.579
Board Room: Thank you. I think it would be good for everyone who has something they want to add, for them to speak now so that we can discuss

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

it all together. I will go to Councilmember Taplin. Thank you. Under health, I wanted to offer

785
02:15:49.610 --> 02:15:53.940
Board Room: Support legislative efforts to protect access to gender-affirming care.

786
02:15:54.420 --> 02:16:13.620
Board Room: Thank you. I think a great addition. Councilmember Blackaby. Thank you, Madam Mayor. I just… I had two in the public safety, area, and it should surprise no one, they're wildfire-related. Number 10, says, currently support legislation and funding to improve fire safety, including undergrounding utilities.

787
02:16:13.730 --> 02:16:23.510
Board Room: I wanted to propose the addition, as well as guaranteeing that homeowners that do fire mitigation work receive home insurance renewals.

788
02:16:24.040 --> 02:16:29.089
Board Room: Which is an important loop-closing mechanism to get the fire safety mitigation done.

789
02:16:29.340 --> 02:16:34.259
Board Room: The other item under funding priorities in the same section, on number 5,

790
02:16:34.500 --> 02:16:42.130
Board Room: Where we talk about grants to support home hardening, including lower, no-interest loan or grant programs, I would just want to add, as well as

791
02:16:42.620 --> 02:16:48.229
Board Room: State income tax credits to assist homeowners in clearing hazardous vegetation and hardening homes.

792
02:16:48.530 --> 02:16:50.470
Board Room: So those are my two additions.

793
02:16:52.209 --> 02:17:10.490
Board Room: One more time, state… State income tax credits. So again, it doesn't hit us, in the county or city, and other states are doing it, but it's a state income tax credit for work that you're doing to harden your

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

home. Thank you, I just want to make sure I heard you correctly. Okay, thank you very much. Moving on to Councilmember Trey Gubb.

794
02:17:13.700 --> 02:17:20.260
Board Room: Thank you so much. He just… Check something… okay.

795
02:17:21.090 --> 02:17:26.029
Board Room: Two amendments under the environmental section.

796
02:17:26.600 --> 02:17:34.980
Board Room: Support measures to incentivize and or expand the use of And or funding for.

797
02:17:35.139 --> 02:17:45.889
Board Room: Local distributed energy resources, such as rooftop solar, battery storage, virtual power plants, And community microgrids.

798
02:17:46.389 --> 02:17:47.870
Board Room: And then,

799
02:17:49.299 --> 02:17:57.089
Board Room: I have… I will have this in writing, as long as you can read my chicken scratch. Second one is…

800
02:17:58.879 --> 02:18:00.059
Board Room: support.

801
02:18:00.650 --> 02:18:08.780
Board Room: Efforts to advance Climate Resiliency and adaptation efforts.

802
02:18:08.969 --> 02:18:11.410
Board Room: Locally and regionally.

803
02:18:13.129 --> 02:18:22.599
Board Room: Thank you. I'm gonna ask, since there are so many here, that you all type these up and send them to… maybe the clerk? What do you think?

804
02:18:23.030 --> 02:18:23.920
Board Room: What's best?

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

805
02:18:25.410 --> 02:18:28.769
Board Room: How would… what's the cleanest way to do this?

806
02:18:30.650 --> 02:18:37.700
Board Room: Yes, I suppose if you want the exact… wording… added that… I shouldn't…

807
02:18:38.129 --> 02:18:39.770
Board Room: I think that would be helpful.

808
02:18:39.900 --> 02:18:41.910
Board Room: Yes, or agendas.

809
02:18:42.459 --> 02:18:45.269
Board Room: Just to me directly would be fine.

810
02:18:45.670 --> 02:18:52.500
Board Room: to our city clerk. Thank you very much, everyone. Okay, Councilmember Bartlett.

811
02:18:53.260 --> 02:19:06.740
Board Room: Thank you, Madam Mayor. A few, a few additions here, really to our conversation tonight, actually. Under healthcare, expansion, of Medi-Cal reimbursement amounts and service categories for community health workers.

812
02:19:07.340 --> 02:19:12.740
Board Room: Second, requesting state technical assistance for place-based health equity initiatives.

813
02:19:13.709 --> 02:19:20.460
Board Room: Three, supporting flexible grant funding to target investment in neighborhoods with measurable life expectancy gaps.

814
02:19:22.320 --> 02:19:29.740
Board Room: And then under homeownership, housing, support density bonus tools For affordable condominiums.

815
02:19:31.290 --> 02:19:35.819
Board Room: Another one is, create local flexibility for inclusionary ownership.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

816
02:19:36.740 --> 02:19:41.780
Board Room: And 7, infrastructure financing that supports entry-level condominiums.

817
02:19:48.559 --> 02:19:50.949
Board Room: Okay, is that everything?

818
02:19:52.610 --> 02:20:01.450
Board Room: Okay. So, since we are very lucky to have Niccolo here in person… Sorry, Madam Mayor. Yes. Apologies.

819
02:20:01.760 --> 02:20:04.960
Board Room: In the spirit of transparency, I added…

820
02:20:05.420 --> 02:20:15.709
Board Room: two boards on the first one, so where it said rooftop solar, it now says distributed slash rooftop slash balcony solar. That's all.

821
02:20:16.430 --> 02:20:17.300
Board Room: Okay.

822
02:20:17.560 --> 02:20:32.919
Board Room: Very good. Councilmember Humbert, just so you know, your mic is still on. So as you are all typing this away and sending it to the clerk, and the clerk is putting it all together, I'm gonna ask if anyone has any questions for Nicola while he's here.

823
02:20:35.720 --> 02:20:37.960
Board Room: Anyone?

824
02:20:38.340 --> 02:20:40.559
Board Room: Take a word for it, huh? Yeah.

825
02:20:42.600 --> 02:20:55.330
Board Room: I'm happy to quickly give an overview, Madam Mayor, if that's okay. That would be great. Madam Mayor, Councilmembers, Niccolo DeLuca, it's an honor to be down here, so thank you very much. Great seeing many familiar faces and some new ones.

826
02:20:55.330 --> 02:21:06.739

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: We have the honor of working for the City of Berkeley in Sacramento and in D.C. Madam Mayor, it was a blast seeing you in DC, and you did a great job in all those meetings, so your constituents must be very happy.

827
02:21:06.740 --> 02:21:15.540
Board Room: We've had a good run with you all, 16 years, over $23 million, and almost 100 bills that we've worked on specifically for the city.

828
02:21:15.540 --> 02:21:26.089
Board Room: So here's where things stand right now in Sacramento. Friday was a bill introduction deadline. There was over 1,800 bills introduced, of which about 500 are spot bills.

829
02:21:26.160 --> 02:21:30.769
Board Room: The bags under my eyes are because we've been reading a lot of builds, and I'm also getting older.

830
02:21:30.860 --> 02:21:47.760
Board Room: So, what we're gonna start doing is sharing more of our legislative matrices on every Friday to start highlighting what's out there. We shared one today highlighting fire safety and insurance, and overall, kind of what's going on in the world of local government. It's gonna be an interesting year.

831
02:21:47.760 --> 02:21:57.509
Board Room: We're seeing a lot of trends, such as e-bike regulations, bills on illegal dumping. There's a lot of, transit sales tax measures.

832
02:21:57.520 --> 02:22:07.960
Board Room: A lot of cities and counties are looking at, the November ballot to see what might be coming down the horizon. Of course, housing, streamlining affordable housing.

833
02:22:08.020 --> 02:22:24.279
Board Room: We're doing a presentation to a budget subcommittee on the need for HAP funding. I've been working with Senator Aragin on his RV bill and his local health jurisdiction bill. I want to thank the city manager and his team for all of his work there. So, a very active year already.

834
02:22:24.380 --> 02:22:28.919

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: As you know, things don't really ramp up until March, April, May, June, July.

835
02:22:29.020 --> 02:22:35.760
Board Room: The budget started off Last year, we're looking at an $18 billion gap.

836
02:22:35.830 --> 02:22:54.190
Board Room: Now we're looking at a $2 billion gap, so hopefully the budget improves. A lot of that is through some of the AI investments that are happening. So that's Sacramento. Dc, we're working with the city manager and his team on some, projects to submit for, community project funding, also known as earmarks.

837
02:22:54.250 --> 02:23:07.740
Board Room: Of which the city did well last year, through the leadership of Congresswoman Simon. Two were signed into law for Ashby BART, and then for Fire Safety, the East Bay Training Center. So, it's been another busy year, looking forward to it.

838
02:23:07.740 --> 02:23:16.750
Board Room: And just really begin to roll up our sleeves to work on legislation. And we appreciate all the positions that you take. The clerk has been great about always sharing

839
02:23:16.750 --> 02:23:27.079
Board Room: positions immediately the day after you all have taken action, and we, of course, share those with the author, with our delegation. We're spoiled. We've got a great assembly member and a great senator.

840
02:23:27.080 --> 02:23:37.109
Board Room: And of course, leadership, Speaker's office, pro tem's office, and committee staff. So happy to answer any questions you all may have, and thank you for all the support and the strong partnership.

841
02:23:37.480 --> 02:23:50.579
Board Room: Thank you very much. Thanks for your presentation, for giving us the overview. I think it is really helpful for everyone to know what's going on and what you all are working on, on behalf of the city. Councilmember Taplin, did you have a question?

842
02:23:50.830 --> 02:24:05.739

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: Yes, thank you. I have two questions. You mentioned, bills respecting e-bike regulations. Yes. Could you speak more about that? What kinds of things? Absolutely. So, through the mayor, council members, so…

843
02:24:05.840 --> 02:24:11.320
Board Room: Right now, I think we've got about 4 bills out, and we're expecting about 12.

844
02:24:11.390 --> 02:24:16.859
Board Room: It's just tighter regulations on how the e-bikes, basically their capacity.

845
02:24:16.880 --> 02:24:35.000
Board Room: whether it's the horsepower or some of the output. There's… there was a study last year about overall e-bike safety, and I've read reports about some of the, operating room surgeons seeing high number of head trauma for young people, 16 and younger.

846
02:24:35.020 --> 02:24:49.629
Board Room: So what we're expecting is, regulations on overall output of the e-bikes, probably starting in effect of 27, going into next year. Maybe different types of infractions for the vehicle code.

847
02:24:49.710 --> 02:25:06.299
Board Room: We do know that e-bikes are a affordable way of transportation for some, but then we've also heard, when I say we, because we talk to a lot of legislators and staff, have heard some of the horror stories of the accidents, of kind of the joyriding, of the…

848
02:25:06.300 --> 02:25:18.120
Board Room: comparability of e-bikes like motorcycles. So, really looking at a handful of bills, trying to be more strict on output of the e-bikes and their overall kind of production.

849
02:25:19.190 --> 02:25:21.810
Board Room: Thank you. Yeah, I was…

850
02:25:22.710 --> 02:25:26.010
Board Room: I've been following some of those bills, and

851
02:25:27.150 --> 02:25:31.050
Board Room: And this isn't a question, but for us to think about,

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

852
02:25:32.780 --> 02:25:38.560
Board Room: As you mentioned, e-bikes are an affordable mode of transportation for many people.

853
02:25:38.720 --> 02:25:52.120
Board Room: And I'm… I'm concerned that efforts to… Adopt stringent regulations will… Create a barrier and…

854
02:25:52.860 --> 02:25:58.559
Board Room: And I think, you know, we all support road safety, but there's no mystery around which vehicles are…

855
02:25:58.910 --> 02:26:00.510
Board Room: Causing the most harm on the road.

856
02:26:00.670 --> 02:26:07.990
Board Room: It's on e-bikes, so… My second question was, are there…

857
02:26:08.780 --> 02:26:12.409
Board Room: In the overall landscape, are you noticing any shifting headwinds?

858
02:26:12.660 --> 02:26:19.700
Board Room: I'm thinking about in public safety in particular, you know, I think if… I think…

859
02:26:20.040 --> 02:26:37.290
Board Room: If we roll back 6 years, there was, I think, one headwind that started to shift a little bit later on. I'm wondering if there are similar things taking place in other areas, including public safety. Absolutely, that is a great question. When it comes to public safety, last year, as you all may recall, I want to say…

860
02:26:38.580 --> 02:26:43.269
Board Room: Oh, and it was an assembly bill about how you treat,

861
02:26:44.440 --> 02:26:57.150
Board Room: prostitutes and the Johns, and the age limit of who is soliciting sex from who, and how those, what the different, punishments may be, felonies, misdemeanors.

862

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:26:57.220 --> 02:27:14.020
Board Room: That bill was heavily discussed, and quite frankly, when I'm in my 19th year, I was a little surprised that it was signed into law. The legislature that I'm more used to has been a little bit more progressive on, kind of, law and order bills.

863
02:27:14.100 --> 02:27:22.890
Board Room: So I was a little bit surprised that that one was signed, and pushed kind of so aggressively. There's actually now already a bill to essentially undercut that.

864
02:27:23.140 --> 02:27:37.929
Board Room: About whether you're, soliciting or loitering, or how you even define that. So, we do have a new class of assembly members and senators, and I am seeing a bit of a shift, a little bit more kind of towards the middle.

865
02:27:38.120 --> 02:27:41.099
Board Room: There's also something to keep in mind.

866
02:27:41.250 --> 02:27:45.170
Board Room: Which isn't necessarily the tone and tenor, but this is the governor's last year.

867
02:27:45.400 --> 02:27:48.410
Board Room: And the governor has been clear on some of his priorities.

868
02:27:48.700 --> 02:28:05.099
Board Room: And there's also a sense of not knowing who'd be the governor next year, and who would be in the cabinet next year. So, former legislative, proposals that might have been maybe waiting for next year are gonna be expedited this year.

869
02:28:05.190 --> 02:28:16.799
Board Room: And so hopefully I'm answering your question as directly as I can, but have seen a little bit of a shift on public safety. None of the bills that we've looked at, this week and in today really kind of stood out.

870
02:28:16.890 --> 02:28:25.500
Board Room: on the side of public safety other than an assembly bill seeking to water down or undercut the bill that was sent into law last year on prostitution and loitering.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

871
02:28:25.650 --> 02:28:32.620
Board Room: Thank you, and I actually have one last question, my apologies, and this is kind of a follow-up, but, just from a high level.

872
02:28:33.220 --> 02:28:42.699
Board Room: Is the… the posture among the legislature… are… are we… do we think that… They're in a…

873
02:28:43.440 --> 02:28:46.500
Board Room: Positioned to advance, or hold, or protect?

874
02:28:46.880 --> 02:28:53.890
Board Room: I think we're, you know, on defense against the Fed, so I'm wondering whether how much the appetite there is of the state to…

875
02:28:54.150 --> 02:28:59.469
Board Room: To push for innovative new things versus fighting the key things we currently have.

876
02:28:59.710 --> 02:29:01.860
Board Room: Great question, definitely both.

877
02:29:01.950 --> 02:29:15.630
Board Room: Last year, there was a lot of bills towards the end of session on ice and masks. There continues to be a handful of bills on immigration, what ICE should not be allowed to do in our state, things of that nature.

878
02:29:15.630 --> 02:29:31.190
Board Room: continue to see the trend of pushing back against DC, primarily through the governor and a lot of his budget proposals, so I expect, definitely, pushing back, but at the same time, continue to advance. I mean, there's… you all know, because you're all a very…

879
02:29:31.240 --> 02:29:37.529
Board Room: well-versed. I mean, there's a tremendous amount of pride in being a Californian, in the California values, in…

880
02:29:37.630 --> 02:29:52.720
Board Room: everything that our state does, and that just gets louder and louder each year with a greater sense of pride, which could be whether

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

it's a housing bill or a bill about climate change. As you all know, the cap and invest was approved last year. A lot of good funding for

881
02:29:52.760 --> 02:30:00.799
Board Room: housing, affordable housing, land conservation, but then also fire safety. So if you ask about trends, I'd say

882
02:30:01.140 --> 02:30:12.549
Board Room: two trends that have been really clear. This year, there's definitely a trend to address illegal dumping. Handful of bills on that. And then another trend is overall fire safety, and that impact, and…

883
02:30:12.550 --> 02:30:24.079
Board Room: How do you, whether it's Zone Zero, which you all led on, how do you do defensible space, what does that look like, and how do neighborhoods really take a stand themselves against what Mother Nature may deal towards you?

884
02:30:25.590 --> 02:30:36.260
Board Room: Thank you, thanks for your questions, and for your thorough responses. Councilmember Traeger, did you have a question? Yes, I have two questions. One,

885
02:30:36.800 --> 02:30:38.539
Board Room: I… I know I've been…

886
02:30:38.920 --> 02:30:48.279
Board Room: Following the legislature not as closely as you, of course, and affordability continues to be top of mind.

887
02:30:48.530 --> 02:30:55.749
Board Room: Any predictions or surprises, thus far in the cycle around, those discussions?

888
02:30:56.090 --> 02:30:59.519
Board Room: And my second question is more pointed, because…

889
02:30:59.870 --> 02:31:08.290
Board Room: it might inform one other potential amendment if the council to our priorities of the Council signs off on it.

890
02:31:08.650 --> 02:31:17.369

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: We do have a no, unfunded mandates language before us, I appreciate it.

891
02:31:18.820 --> 02:31:32.829
Board Room: In the context of the governor's, released budget, which, appears to shift the burden of funding for,

892
02:31:34.780 --> 02:31:39.190
Board Room: Certain mental health services to local

893
02:31:39.690 --> 02:31:49.760
Board Room: and county jurisdictions. I'm wondering if you could talk about that a little bit, and would it be…

894
02:31:50.330 --> 02:31:52.850
Board Room: If you were advising.

895
02:31:52.960 --> 02:32:04.030
Board Room: a city council, which you kind of are. Would you feel that it might be beneficial to insert some language around,

896
02:32:04.200 --> 02:32:15.769
Board Room: Making sure that there is appropriate funding and, resourcing for local jurisdictions for, mental health or other forms of healthcare.

897
02:32:16.360 --> 02:32:34.089
Board Room: Absolutely, through the Mayor, Councilmember, I would say the way that the Ledge platform is written out, it's clear about any impacts to local funding, whether it's to the city, to the county, or to the region, so I think you're very solid there. You were mentioning about overall mental health funding, kind of pushing that back on the county.

898
02:32:34.100 --> 02:32:47.630
Board Room: Something to keep in mind, and the governor was very proud of, was Prop 1, and the funding for Prop 1, and how that's tied to not just services, but also housing. So that was part of it. Something that the governor did towards the end of the session last year was

899
02:32:47.690 --> 02:33:01.020
Board Room: use the cap and invest proceeds to help offset other costs that the state would take to make sure the state's general fund wasn't as negatively impacted. Affordability, you asked, you know, I would say.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

900
02:33:01.070 --> 02:33:19.019
Board Room: We're still extremely early in the legislative process, and that is something a lot of us have identified, and we're waiting to see what happens. Whereas both houses, the Senate and the Assembly, have been clear they want to make the state affordable, especially for, middle-class families and working-class families.

901
02:33:19.250 --> 02:33:22.259
Board Room: What's gonna be interesting, though, is also

902
02:33:22.620 --> 02:33:28.480
Board Room: Lack of redevelopment, so there's not the funding that the cities have for greater flexibility to build.

903
02:33:28.540 --> 02:33:42.129
Board Room: There's a discussion of the housing bond, which could be up to $10 billion, which would be spent very quickly, but there's also been a push from the legislature of, let locals decide how they want to handle things, and so I think the rub could be

904
02:33:42.130 --> 02:33:57.990
Board Room: what the affordability package would look like versus allowing cities and counties and others to take their destiny in their own hands. As of right now, we don't yet have an answer on that, but affordability is a theme I will hear kind of throughout the legislation.

905
02:33:58.630 --> 02:34:01.550
Board Room: Thank you. Councilmember Bartlett, do you have a question?

906
02:34:01.760 --> 02:34:07.490
Board Room: Oh, thank you. I was curious of, what's the outlook on, our insurance issue?

907
02:34:08.240 --> 02:34:17.919
Board Room: There was a handful of… first, there was an informational hearing about 2 weeks ago, 3 weeks ago, on overall housing and insurance for houses, whether it's affordable housing, whether it's…

908
02:34:17.920 --> 02:34:33.090
Board Room: in a fire area, what have you. It's getting louder and louder to make sure the insurance companies cannot increase their rates so high, but at the same time that they're protected in case of a catastrophe. We're expecting a handful of insurance bills.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

909
02:34:33.090 --> 02:34:47.460
Board Room: that are substantive and are really gonna try to help kind of move the needle. Definitely going to flag those for the city. There was a few last year that didn't make it to the finish line, but I know their authors are committed to doing so. So that will remain another hot topic of

910
02:34:47.460 --> 02:34:57.419
Board Room: What does affordability for insurance look like? How do you maintain as much coverage as you possibly can, especially for single-family houses in the urban wildfire interface area?

911
02:34:59.170 --> 02:35:00.390
Board Room: Thank you.

912
02:35:00.630 --> 02:35:17.330
Board Room: Okay, so, one other thing I want to make sure that I get everyone's okay on is our ability to send advocacy letters that are supported by these areas without coming to Council first, because that will allow us to move more expeditiously, if things come up that we can support.

913
02:35:17.430 --> 02:35:18.250
Board Room: Just wanna…

914
02:35:18.610 --> 02:35:35.729
Board Room: see if anyone's opposed. Okay. Alright, so we have a number of additions that have been recommended. Personally, I'm fine with taking all of them as friendly amendments. I just want to see if anyone has any other comments about that. Actually, I need to take public comments, so let me do that first. Public comments.

915
02:35:50.140 --> 02:35:57.409
Board Room: Hi, and I would, like to thank Carol and Brianna for yielding time to me.

916
02:35:59.190 --> 02:36:15.919
Board Room: So, do I get a minute from each of them? Okay. Hi, my name is Sarah Bell, and I'm speaking on behalf of Berkeley's Housing Advisory Commission. The Commission met on Thursday, February 5th, to make recommendations on the housing section of our city's legislative priorities.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

917
02:36:16.080 --> 02:36:32.230
Board Room: And as a Commission, we recommended a number of edits. I would like to emphasize that the Commission voted unanimously in favor of each of our edits, so we respectfully request that Council incorporate our feedback into the final legislative priorities, which overlap with changes, suggested by Council members already tonight.

918
02:36:32.440 --> 02:36:38.150
Board Room: You should have received a memo with the rationale for each of our edits in the agenda packet. In other words, we did type it up.

919
02:36:38.660 --> 02:36:53.079
Board Room: And I will attempt to summarize them now. There are some complications around which version we started from in making our edits. I'm happy to sort out which items we're referring to. And I would also like to thank, the city's lobbyists, for all of their efforts, thus far.

920
02:36:53.670 --> 02:37:09.019
Board Room: So starting with recommendations for tenant protections, we recommended codifying rent relief and eviction moratoria for future emergency situations, and enhancing our state code around preventing tenant harms that come from predictive algorithms. Both of these are timely, given the changing world we inhabit.

921
02:37:09.370 --> 02:37:26.539
Board Room: Moving on to housing construction, we recommended pursuing changes to the building code, such as universal design and elevator reform to make our buildings more accessible, and allowing single-stair modular construction and the use of the residential code for middle housing, that last one being very important for our city, because we just passed middle housing.

922
02:37:26.720 --> 02:37:42.709
Board Room: We also recommended pursuing condo deposit and condo defect reform to enable multi-family for-sale housing to pencil, because despite our recent boom of rental housing, significantly less for-sale multifamily housing has been constructed in Berkeley over that same period.

923
02:37:42.870 --> 02:37:57.579
Board Room: In the area of funding, we suggested edits in order to be concrete in the outcomes we wish to achieve without being overly specific on the mechanism. We also recommended expanding the item on funding seismic retrofitting to include home hardening as well, since many homes in Berkeley are at elevated risk of wildfire.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

924
02:37:58.520 --> 02:38:11.820
Board Room: On changes to the California Constitution, the Commission recommends promoting the repeal of Article 34 to its own item, and to put a finer point on the item about lowering the voter threshold for passing affordable housing bonds, specifying 50% plus 1.

925
02:38:12.010 --> 02:38:16.480
Board Room: We emphatically need to make it easier to approve and fund affordable housing.

926
02:38:17.250 --> 02:38:30.110
Board Room: The final piece of text that we recommended adding is an edit to, item 9 in the mayor's memo, and number 10 in the one that we received, to expand the scope of our support for student housing, and also to include education workers in that support.

927
02:38:31.360 --> 02:38:45.890
Board Room: As for the text that we recommended removing, the item on LIHTC changes, 9 in ours, 8 in the Mayor's memo, did not actually, we recommended removing that because, it did not actually indicate a need for any legislative changes at this time.

928
02:38:46.240 --> 02:38:57.399
Board Room: The item on programs, to fund, which was 14, in ours and 12 in, the mayor's version, we suggested merging, just into a more general item on funding.

929
02:38:57.460 --> 02:39:12.989
Board Room: And lastly, the item on ADU law seemed to be a holdover from years past, so we recommended removing it. And furthermore, allowing other cities to count ADUs towards their RENA allocation, could be detrimental for a city like Berkeley that takes its housing goals very seriously.

930
02:39:12.990 --> 02:39:20.559
Board Room: Where… and, of course, housing is a regional, concern. And so that's another reason to remove the item on ADUs.

931
02:39:21.040 --> 02:39:38.510
Board Room: Thank you so much for your time and consideration of these changes, and we hope you incorporate our suggestions. I'll make myself available to answer any questions and help track across versions, and I

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

really appreciate, again, both, both our lobbyists' work and the Council's work on producing these priorities. Thank you.

932
02:39:38.650 --> 02:39:56.319
Board Room: Thank you, Sarah. I did not receive your email, so, we're checking for it right now, but I don't think we received it, so… it's very concerning. So we might need to take a mini break at some point, probably after public comments, so we can go through this to make sure.

933
02:39:56.320 --> 02:39:59.959
Board Room: It's clear. So, is there any other public comment?

934
02:40:00.460 --> 02:40:01.160
Board Room: Yes.

935
02:40:05.390 --> 02:40:24.610
Board Room: Hello, not taking any position on any item, but wanted to just piggyback on the question about headwinds, and I know it's not a back and forth, but in case anyone else has this question, I just recently started tracking the kind of mental health diversion efforts that have been happening at the state level.

936
02:40:24.610 --> 02:40:32.480
Board Room: Around more mental health diversion in the courts, and I know today the Public Safety Committee at the state

937
02:40:32.480 --> 02:40:40.619
Board Room: like, Senator Aragin came out with some recommendations around a bill related to mental health diversion, and I just thought.

938
02:40:40.990 --> 02:40:44.609
Board Room: given Berkeley's challenges, it would be nice if

939
02:40:44.660 --> 02:40:51.049
Board Room: That subject were included on the list in some way for the city to be able to maybe lobby around

940
02:40:51.050 --> 02:41:05.919
Board Room: Or I'd like to be interested in hearing sort of more of the headwinds around that, if that's something that the lobbyists could talk about if someone else had that question. Thank you. Thank you. Any other public comment on this item here in person or online?

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

941
02:41:07.340 --> 02:41:09.690
Board Room: Anyone online have public comment on this item?

942
02:41:14.820 --> 02:41:16.309
Board Room: There's no hands raised.

943
02:41:16.560 --> 02:41:23.960
Board Room: The letter from the hack is in the Sub 2 packet. I see it. Yeah, we found it. Thank you.

944
02:41:24.690 --> 02:41:37.820
Board Room: I want to give us, like, 5 minutes, just to… because there's a lot of different pieces of things. So if you can give us 5 minutes, I want to review a couple things, and then come back, and we can have a conversation.

945
02:41:55.200 --> 02:41:56.499
Board Room: Hi. So, okay.

946
02:41:57.370 --> 02:42:19.450
Board Room: So, the… reviewing what was sent, the numbers don't line up with the current numbers of this, and it's very messy, and… messy to combine all these different things together, and I think for the sake of transparency and making sure everyone is clear on what it is that we are, voting on, I'd like to actually continue this item until another time, so that we can actually take the time to

947
02:42:19.450 --> 02:42:37.179
Board Room: rewrite it, take everyone's edits, make sure it's clear what we're all voting on, because I understand, like, right now, I would say most of this is not controversial, but, I do think it's important for us to be clear what it is we're voting on. So, I'm going to ask that we continue this item, which, Mr. City Clerk, I just want to make sure means that if we…

948
02:42:37.180 --> 02:42:40.700
Board Room: We would move this to the next council meeting.

949
02:42:43.140 --> 02:42:48.499
Board Room: Which is… Yes, you certainly can on March 10th. March 10th.

950
02:42:48.660 --> 02:42:50.280

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: Okay, okay.

951
02:42:50.420 --> 02:43:09.029
Board Room: We are gonna do that for the… for the sake of transparency and clarity. So I apologize. Thank you all very much. I really appreciate you, Niccolo, for coming to be here and answer our questions, and by next time, we should have something that's a little cleaner for us to actually approve, and we'll be able to pass it forward with you.

952
02:43:09.510 --> 02:43:20.419
Board Room: But, you know, like I said, nothing here is… is super controversial, it's really more a matter of getting it… getting it straight, clear. So, okay, so with that… We won't, we won't…

953
02:43:21.480 --> 02:43:30.349
Board Room: Be able to carry over any of the additions that were… added tonight. What's that?

954
02:43:30.970 --> 02:43:35.740
Board Room: So, I mean, it could be reintroduced at the next… Meeting.

955
02:43:35.920 --> 02:43:53.859
Board Room: We will reintroduce these changes at the next meeting. Yes. All of them in together. Yes. Okay. Could we… is there a way to… could we submit them as a supplemental so they could be published ahead of time? Yeah. Instead of just read on the dais again? I think that would be the idea, is to have it printed ahead of time, written down, everyone can review it and read it before.

956
02:43:54.900 --> 02:44:06.649
Board Room: Okay. Okay, very good. Alright, thank you all very much for that, and that is our actual, our final item for this evening, so I will ask if there's any public comment for items not listed on the agenda.

957
02:44:09.350 --> 02:44:13.320
Board Room: And thank you.

958
02:44:15.720 --> 02:44:27.019
Board Room: So I just want to advise Council that at the end of June, the mental health trauma contracts that we have will all be coming to an end, so that's the contract.

959
02:44:27.020 --> 02:44:46.400

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Board Room: to serve the African American population, the Latino immigrant population, the LGBTQ population, and those may or may not be renewed. So as long as mental health was raised, I was gonna mention, that's… that may be an additional gap in our system as we…

960
02:44:46.400 --> 02:44:49.300
Board Room: address all of these issues.

961
02:44:49.600 --> 02:45:04.719
Board Room: I also was sad to hear, during the legislative presentation, I don't know if… what that law was that was mentioned as far as sex workers and the customers, and I'm gonna take a look at it.

962
02:45:04.960 --> 02:45:06.120
Board Room: It has…

963
02:45:06.660 --> 02:45:17.479
Board Room: A while ago, sex trafficking came up as a recommendation from another commission I was on, and it really is an issue in Berkeley. It's very sad to attend

964
02:45:17.590 --> 02:45:33.579
Board Room: an event in… am I able to keep talking? Okay. It was very sad to attend a very well-attended event in Berkeley and see a young girl who is… was clearly, and she was clearly underage, with…

965
02:45:34.470 --> 02:45:36.400
Board Room: Her, her zipper down.

966
02:45:36.880 --> 02:45:46.419
Board Room: posed on the sidewalk and passing by, and what do you do? I don't know what to do. I mean, I want to have her arrested. That is not a response.

967
02:45:46.430 --> 02:46:02.359
Board Room: to a young girl who's being exploited. So I wonder, and I… how much do we really care about addressing that issue that young girls are being trafficked? And I had mentioned previously about coming across someone in a homeless encampment.

968
02:46:02.680 --> 02:46:19.079
Board Room: was very suspect, the man she was with, who was about 60 when she was clearly underage, and 6 months pregnant. So it is an issue in our

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

community, and there are only… I'm referring to the city manager. Thank you.

969
02:46:19.890 --> 02:46:26.580
Board Room: Thank you. Is there any other public comment on items not listed on the agenda?

970
02:46:27.610 --> 02:46:28.980
Board Room: Anyone online?

971
02:46:30.010 --> 02:46:33.160
Board Room: There's one… one hand raised online.

972
02:46:43.140 --> 02:46:47.200
Board Room: Should be able to unmute. Caller ending in 211.

973
02:46:50.180 --> 02:46:57.930
1510****211: Hi, last item which I must talk about since Donald Trump

974
02:46:58.470 --> 02:47:05.270
1510****211: rejected the Eucharist, treaty that had been in effect for over 50 years.

975
02:47:05.690 --> 02:47:12.710
1510****211: The doomsday clock was advanced Seconds before midnight. This man is crazy, and he will do it.

976
02:47:12.940 --> 02:47:18.570
1510****211: If we do have nuclear war, which can happen because of Ukraine, mostly, or anywhere else.

977
02:47:18.700 --> 02:47:24.550
1510****211: 98% of humans are going to vanish within minutes, or seconds, or hours.

978
02:47:24.750 --> 02:47:30.219
1510****211: 2% will die within days or weeks from very painful deaths.

979
02:47:30.500 --> 02:47:41.850
1510****211: That must stop. Must stop this crazy man. And, you know, please watch his, the talk, he's talking tonight, and laugh!

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

980
02:47:42.120 --> 02:47:44.329
1510****211: Have a good night, and good to talk to you.

981
02:47:45.260 --> 02:47:52.780
Board Room: Thank you. Any other public comment? That's all. Okay, is there a motion to adjourn? So moved. Second.

982
02:47:53.270 --> 02:48:02.240
Board Room: As long as there is no opposition to adjourning, we will be adjourned for this evening. Meeting adjourned. Thank you all.

Unofficial Text File